

The Advocates Act, 1961

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Union of India - Act

The Advocates Act, 1961

UNION OF INDIA

India

The Advocates Act, 1961

Act 25 of 1961

Published on 19 May 1961

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Pondicherry (Extension of Laws) Act, 1968 (Act 26 of 1968)

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The Madras State (Alteration of Name) (Adaptation of Laws on Union Subjects) Order, 1970 (Regulation THE-MADRAS-STATE-ALTERATION-OF-NAME-ACT-1968-53-OF-1968 of 1970)

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[Amended by The Advocates (Amendment) Act, 1976 (Act 107 of 1976) on
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The State Of Arunachal Pradesh Act, 1986 (Act 69 of 1986)
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[Amended by The Advocates (Amendment) Act, 1993 (Act 70 of 1993) on
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Bihar Reorganisation Act, 2000 (Act 30 of 2000)
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The Adaptation Of Laws Orders Under Madhya Pradesh Reorganisation Act, 2000 (Rule
THE-ADAPTATION-OF-LAWS-ORDERS-UNDER-MADHYA-PRADESH-REORGANISATION-ACT-2000 of 2000)
on
5 December 2000

]

[Amended by The North-Eastern Areas (Reorganisation) and other Related Laws (Amendment) Act, 2012 (Act 26 of
2012) on
4 June 2012

]

The Advocates Act, 1961
(25 of 1961)
001.

Statement of Objects and Reasons.-The Bill seeks to implement the recommendations of the All-India Bar Committee
made in 1953, after taking into account the recommendations of the Law Commission on the subject of Reform of

Judicial Administration insofar as the recommendations relate to the Bar and to legal education.

2. The main features of the Bill are,

- (1) the establishment of an All-India Bar Council and a common roll of advocates, and advocate on the common roll having a right to practise in any part of the country and in any Court, including the Supreme Court;
- (2) the integration of the bar into a single class of legal practitioners known as advocates;
- (3) the prescription of a uniform qualification for the admission of persons to be advocates;
- (4) the division of advocates into senior advocates and other advocates based on merit;
- (5) the creation of autonomous Bar Councils, one for the whole of India and one for each State.

3. Following the recommendations of the All-India Bar Committee and the Law Commission, the Bill recognises the continued existence of the system known as the dual system now prevailing in the High Courts of Calcutta and Bombay, by making suitable provisions in that behalf. It would, however, be open to the two High Courts, if they so desire, to discontinue this system at any time.

4. The Bill, being a comprehensive measure, repeals the Indian Bar Councils Act, 1926, and all other laws on the subject.

5. The Notes on clauses explain, wherever necessary, the various provisions of the Bill.

Gazette of India, 19-11-1959, Pt. II-Section 2, Ext., p. 1186.

Act 14 of 1962.- The Advocates Act, 1961 provides for an autonomous Bar Council in each State and an All India Bar Council consisting mainly of the representatives of the State Bar Councils. Under the Act, a State Bar Council is to enroll qualified persons as advocates and prepare a roll of advocates practising in the State and thereafter common roll of advocates for the whole of India is to be prepared by the Bar Council of India. The Advocates whose names are entered in the common roll would be entitled as of right to practise in all the Courts in India including the Supreme Court.

2. Provision was made in the Act for its enforcement piecemeal and Chapters I, II and VII which provide for the constitution of Bar Councils and certain transitional measures were brought into force on the 16th August, 1961. It was expected that all the Bar Councils would be constituted by December, 1961 and a common roll would be prepared soon thereafter. On that expectation, Chapter III which relates to the admission and enrolment of advocates was brought into force on the 1st December, 1961. The expectation has not however been realised. One of the State Bar Councils is yet to be constituted and the Bar Council of India could not therefore be formed.

3. The delay in the constitution of Bar Councils and the preparation of the common roll has created certain difficulties. Where a State Bar Council has not been constituted there is no authority to enrol qualified persons as advocates and even where such a council has been constituted it cannot function effectively in the absence of proper rules which require the previous approval of the All India Bar Council. Moreover, even when a person is enrolled as an advocate on a State roll, he will not be entitled to practise until his name is entered in the common roll and Chapter IV is brought into force.

4. Difficulties, therefore, arose in the enrolment of proper persons as advocates and in conferring on them the right to practise. Since sections 6 and 7 of the Legal Practitioners Act, 1879 stood repealed from the 1st December, 1961 when Chapter III was brought into force, doubts arose whether the certificate to a pleader or a mukhtar could be issued or renewed after that date. Thus unforeseen difficulties were causing unintended hardship to certain persons and it was considered necessary to take immediate action to amend the Advocates Act, 1961 by promulgating an Ordinance. The Advocates (Amendment) Ordinance was accordingly promulgated on the 24th January, 1962 for making suitable transitional provisions to overcome the difficulties which arose in the working of the Act. This Bill seeks merely to replace the Ordinance by an Act of Parliament. Opportunity has been taken to make certain minor drafting changes in the Advocates Act. - S.O.R. Gaz of Ind.. 12-3-1962, Pt. II, Section 2, Ext., p. 12.

Act 25 of 1962.- Under section 24(1) of the Advocates Act, 1961, in order to be admitted as an advocate on a State roll, a person must have obtained a degree in law and undergone a course of training, and passed an examination, prescribed by the State Bar Council. Under the proviso to that section, however, persons who have obtained their degree in law from any University in India before the appointed day, that is. the 1st December, 1961. when section 24 was brought into force, are entitled to be admitted as advocates even without having undergone the prescribed training and passed the prescribed examination as aforesaid. The final L.L.B. examinations of the three Universities in the State of Maharashtra, namely, Poona, Marathwada and Bombay were held in October, 1961. The results of the first two Universities were published in November, 1961. Accordingly, the students of those two Universities who passed the L.L.B. examination held in October, 1961, were entitled to be enrolled as advocates. But the result of the L.L.B. examination of the Bombay

University was published on the 12th December, 1961. the consequence being that the students of that University who came out successful in the L.L.B. examination are not eligible to be enrolled as advocates without the prescribed training and examination. This has caused unintended hardships on, and discrimination against, the students of Bombay. It is accordingly proposed to amend suitably sub-section (I) of section 24 of the Advocates Act, 1961, so as to provide that those who passed their final law examination before the 31st December, 1961, would be entitled to the benefit conferred by the proviso to that sub-section. S.O.R. - Gazette of India, 8-6-1962, Pt. II, Section 2, Ext., p. 250.

Act 22 of 1962.- Under the Advocates Act, 1961 a State Bar Council has been empowered to enrol qualified persons as advocates on its roll. In order that a person who has obtained a degree in law may be eligible for such enrolment, he has to undergo a course of training in law and pass an examination thereafter as required by section 24(1)(d) of the Act. The State Bar Councils are required to frame rules for the purpose but they do not have effect, unless they are approved by the Bar Council of India. The persons who passed the final law examination before the 28th February, 1962 were exempted from undergoing the prescribed course of training and examination mainly because all the Bar Councils were not constituted by that time and effective rules for the purpose could not be framed. The Bar Councils have now been constituted but no effective rules for the purpose of prescribing the course of training and examination have yet been made. It may still take some considerable time for all the State Bar Councils to make the necessary rules and get them approved by the Bar Council of India.

2. Difficulties have arisen on account of the inordinate delay in framing the necessary rules. The persons who have passed their final Law examination after the 21st February, 1962 are not able to undergo the necessary training in the absence of proper rules. This is causing undue hardship to them. Representations have been received from various States and Universities urging upon the Government to undertake immediate steps for removing the difficulties experienced by these Law graduates.

3. It is therefore, proposed to amend the Act empowering the Central Government to make rules for State Bar Councils to provide for a course of practical training in law and the examination to be passed after such training. This would be an enabling provision and the Central Government would exercise the power only when it is necessary to do so. When, however, any State Bar Council makes any effective rules for the purpose, the rules made by the Central Government would cease to be in force on a notification issued in this behalf.

4. There are some practising lawyers in Tripura, Manipur and other parts of India who are not legal practitioners under the Legal Practitioners Act, 1879 or the Bombay Pleaders Act, 1920. While the Act provides for the issue or renewal of certificates of practice to legal practitioners under these Acts, difficulties have arisen in the case of lawyers to whom other laws apply Opportunity is being taken to remove this difficulty by making a minor amendment in section 58(4) of the Act.

5. The Bill seeks to achieve these objectives.- S.O.R. - Gazette of India, 13-8-1962, Pt. II. Section 2, Ext., p. 641.

Act 21 of 1964.- The working of the Advocates Act, enacted in May, 1961, has revealed certain practical difficulties and representations in this behalf have been received from various State Bar Councils and other Associations. The Bar Council of India has also suggested certain amendments to the Act. Difficulties were being experienced mainly in regard to the functioning of the Bar Councils and the Committees thereof and also in regard to the enrolment as advocates of certain classes of persons who may not fall strictly within the scope of sections 17 and 24 of the Act. It is considered necessary that the Act should be suitably amended for removing such difficulties and for facilitating the implementation of its provisions.

2. The Act provides for the general supervision and control of the Bar Council of India over all State Bar Councils in order that they may, in the exercise of their powers, follow a uniform all-India policy. The powers given to the Bar Council of India in this behalf are, however, inadequate and it is considered necessary to enlarge its powers. It is therefore proposed to empower the Bar Council of India to issue appropriate directions to a State Bar Council or a Committee thereof, and also to exercise powers of revision in relation to any proceeding disposed of by a State Bar Council. It is also proposed to enlarge the appellate jurisdiction of the Bar Council of India. It is further proposed to give wider rule making powers to the Bar Council of India. For the efficient and smooth working of the Act, it is also considered necessary to vest in the Central Government powers to make rules in respect of matters which may be considered necessary.

3. The State Bar Councils have been given wide powers under the Act in respect of various matters, including disciplinary matters. It is considered that in the interests of efficient functioning of a State Bar Council, it should consist of some advocates who have at least ten years' standing. There was such a provision in the Indian Bar Councils Act,

1926. It is accordingly proposed to provide that, as nearly as possible one-half of the elected members of every State Bar Council should be advocates of not less than ten years' standing. The other principal amendments proposed in the Bill are

- (1) that the term of office of a member of the Bar Council of India elected by a State Bar Council should normally be for the same period for which he holds office as a member of a State Bar Council;
- (2) that the Bar Council of India should be empowered to form more than one disciplinary committee, and that the disciplinary committee of a Bar Council should consist of three members only one of whom should be a co-opted member ;
- (3) that the Bar Council of India should be empowered to refuse, in suitable cases, the applications for the transfer of the name of an advocate from one State roll to another;
- (4) that the Bar Council of India should be permitted to prepare and maintain the common roll in such manner as it thinks fit;
- (5) that certain categories of persons who may not at present be entitled to be enrolled as advocates should be so entitled;
- (6) that the State Bar Council should have more effective control over its enrolment committees; and
- (7) that the disciplinary jurisdiction of State Bar Councils should be extended to certain proceedings which are not at present covered by the Act.

4. The Bill seeks to achieve these objects. Opportunity has also been taken to make certain other amendments of a minor character.

5. The notes on clauses appended to the Bill explain the provisions thereof, - S.O.R. - Gazette of India, 18-4-1964, Pt. II, Section 2, Ext., p. 297.

Act 107 of 1976.- "Experience gained in the practical working of the Advocates Act, 1961 has necessitated the following amendments.

(1) Abolition of the Dual System

The Indian High Courts Act, 1861 (commonly known as the Charter Act) passed by the British Parliament enabled the Crown to erect and establish High Courts in India by Letters Patent and these Letters Patent authorised and empowered the high Courts to make rules for enrolment of advocates and attorneys (commonly known as solicitors). Under these rules, a suitor on the original side of the High Courts at Bombay and Calcutta has to approach an advocate only through the conduit of a solicitor. Though the rules of the High Courts have minimised this compulsion recently, complaints have been voiced against the system mainly on the ground that it imposes a double burden on a poor litigant who is required to pay fees to two sets of professionals and it has been suggested that the two classes of professionals, namely, advocates and solicitors that stand between the law and the lay should be amalgamated into a single class of advocates. It is proposed to give effect to the suggestion by abolishing the dual system with a view to simplifying and streamlining Court procedure, avoiding stratification of the profession and reducing the cost of litigation keeping the needs of the consumer of the legal process as a matter of paramount importance.

(II) Reducing the share of the Bar Council of India in the enrolment fees

Presently out of Rs. 250 paid by an applicant for enrolment as advocate, the share of the apex body, namely, the Bar Council of India is 40 per cent and the remainder is retained by the State Bar Council where he is enrolled. The State Bar Councils have complained that they are hampered for want of funds in implementing welfare schemes like insurance and provident fund for advocates and legal aid to the poor. It is, therefore, proposed that the share of the Bar Council of India in the enrolment fees should be reduced to 20 per cent, from the existing 40 per cent.

(iii) Making the Law Officers of the Centre and the State ex-officio Chairmen of the Bar Council of India and State Bar Councils respectively

Under the present scheme of the Advocates Act, 1961, the posts of Chairmen and Vice-Chairmen of the Bar Council of India as well as the State Bar Councils are elective ones. The Attorney-General of India as well as the Advocates-General of States are indubitably leaders in their own rights in the profession as being well-known for their erudition, advocacy, integrity and legal acumen. It is proposed to make these Law Officers ex-officio Chairmen of the Bar Council of India and the State Bar Councils respectively; Solicitor-General of India, the ex-officio Vice-Chairman of the Bar Council of India and the seniormost Advocate from amongst the elected members of a State Bar Council to be the Vice-Chairman of that Council. Representation is sought to be given to the Central Government on the Bar Council of India and a rotational pattern for Chairmanship amongst the Advocates-General is being introduced as respects Bar

Councils constituted for territories comprising of more than one State.

Hence, the Bill."- S.O.R. - Gazette of India, 24-8-1976, Pt. II, Section 2. Ext., p.1285.

Act 38 of 1977.- "The Advocates (Amendment) Act, 1976 made several changes in the Advocates Act, 1961, According to the amended Act, the Attorney-General of India and the Advocates-General of the States became the ex-officio Chairmen of the Bar Council of India and the State Bar Councils, respectively. The Solicitor-General of India became the ex-officio Vice-Chairman of the Bar Council of India; and the seniormost Advocate from among the elected members of the State Bar Council became the Vice-Chairman of the Council. In the case of the State Bar Council of Delhi, an advocate nominated by the Central Government, became the Chairman. The Central Government was also empowered to nominate one officer as a member of the Bar Council of India for a period of two years.

2. This amendment has been criticised by several Bar Councils and members of the public and the legal profession as a retrograde step and as not conducive to the efficient and proper running of the Bar Councils and one which sets at naught the very fundamentals of autonomy of an independent profession. The Central Government has considered the matter de novo and it is proposed to amend the Act to restore the democratic principle of elected Chairman and Vice-Chairman for the Bar Council of India and the State Bar Councils. The provisions empowering the nomination of an officer on the Bar Council of India is also proposed to be omitted. To avoid any disruption in the day-to-day working of the Bar Councils, it is provided that the existing Chairman and Vice-Chairman shall carry on the duties of his respective office till the new Chairman or Vice-Chairman, as the case may be, duly elected, assumes charge of the office.

3. Section 8 of the Act provides for a term of four years for office of elected members of the State Bar Councils. As election to the State Bar Councils is a time-consuming process and involves considerable expenditure the term of office of the members of the State Bar Councils, in relation to which the term has not already expired, is proposed to be increased to five years from the existing four years.

4. One of the major changes brought about by the Advocates (Amendment) Act, 1976, was the abolition of the dual system in the High Courts of Bombay and Calcutta. In Calcutta, however, it was not necessary to possess a Degree in law for a period to enter into agreement of articleship. In order to remove the hardship caused to the articulated clerks who have entered into agreement of articleship before the 31st December, 1976 and who have passed the preliminary examination but not passed the Intermediate/Final examination, it is proposed to empower the Calcutta High Court to hold the Intermediate/Final examination up to 31st December, 1980 for the aforesaid articulated clerks, and such of those articulated clerks who pass the final examination will be eligible to be enrolled as advocates.

S. Since Parliament was not in session and urgent action was called for it was considered necessary to issue the Advocates (Amendment) Ordinance, 1977 and the same was promulgated on the 31st October, 1977.

6. This Bill seeks to replace the Ordinance by an Act of Parliament"-S.O.R. - Gazette of India, 18-11-1977, Pt. II, Section 2, Ext., p. 574.

Act 47 of 1980, The class of legal practitioners known as attorneys was abolished by the Advocates (Amendment) Act, 1976 and the pre-existing attorneys were required to become advocates under the Advocates Act. With a view to protecting their seniority, it is proposed to amend section 17 of the Advocates Act to provide that the seniority of an attorney who has become an advocate shall be determined by the date of his enrolment as attorney.

2. Under section 23 of the Advocates Act, 1961; the Attorney-General of India, the Solicitor-General of India and the Additional Solicitor-General of India have in that order pre-audience over all other advocates. A second Additional Solicitor-General has been appointed. For the better discharge of the legal business of Government, on the same terms and conditions of service as the Additional Solicitor-General and with the same functions. It is, therefore, proper that his right of pre-audience should be recognised by Statute. Accordingly, it is proposed to amend section 23 of the Advocates Act, so as to give him the right of pre-audience immediately after the other three law Officers of the Government of India.

3. The Bill seeks to achieve the above objects. -S.O.R. - Gazette of India, 12-6-1980, Pt. II, Section 2. Ext., p. 418.

Act 70 of 1993.- On the basis of various proposals made by the Bar Council of India and certain other bodies and the experience gained in the administration of the Advocates Act, 1961 (25 of 1961), it is found necessary to amend the Act with a view to enabling the Bar Council of India and the State Bar Councils to function more effectively for the betterment of the legal profession.

The Bill proposes, inter alia, to-

(i) empower the State Bar Councils to promote the growth of Bar Associations for purposes of implementing the welfare schemes for advocates and to visit and inspect Universities on the directions of the Bar Council of India and to constitute funds for establishing law libraries;

- (ii) provide for automatic cessation of membership of members of the State Bar Councils in the event of non-holding of elections within the stipulated period and for making consequential arrangements;
- (iii) enable the Bar Council of India and the State Bar Councils to meet at places other than their respective headquarters;
- (iv) increase the enrolment fee from two hundred and fifty rupees to seven hundred and fifty rupees without disturbing the fee payable at present by persons belonging to the Scheduled Castes or the Scheduled Tribes;
- (v) empower the State Bar Councils not to admit a person as an advocate on a State roll if he has been dismissed or removed from any employment or office under the State on a charge involving moral turpitude;
- (vi) empower the Supreme Court of India to make rules for determining the persons who shall be entitled to plead before that Court.

2. The Bill seeks to achieve the above objects. - Gazette of India 24-2-1992, Pt. II - Section 2. Ext. p. 4 (No.1)

[19th May, 1961]

An Act to amend and consolidate the law relating to legal practitioners and to provide for the constitution of Bar Councils and an All-India Bar .

Be it enacted by Parliament in the Twelfth Year of the Republic of India as follows:

Chapter I

Preliminary

1.

Short title, extent and commencement.

(1)

This Act may be called The Advocates Act , 1961.

(2)

It extends to the whole of India.

(3)

It shall, in relation to the territories other than those referred to in sub-section (4), come into force on such date as the Central Government may, by notification in the Official Gazette, appoint, and different dates may be appointed for different provisions of this Act.

(4)

This Act shall, in relation to the State of Jammu and Kashmir and the Union territory of Goa, Daman and Diu, come into force on such date as the Central Government may, by notification in the Official Gazette, appoint in this behalf, and different dates may be appointed for different provisions of this Act.

2.

Definitions.

(1)

In this Act, unless the context otherwise requires,

(a)

advocate means an advocate entered in any roll under the provisions of this Act;

(b)

appointed day, in relation to any provision of this Act, means the day on which that provision comes into force;

[* * *]

[Clause (c) Omitted by Section 2 of Central Act 107 of 1976.]

(d)

Bar Council means a Bar Council constituted under this Act;

(e)

Bar Council of India means the Bar Council constituted under section 4 for the territories to which this Act extends;

[* * *]

[Clause (f) Omitted by Section 3 of Central Act 60 of 1973.]

(g)

High Court, except in sub-section (1) and sub-section (1-A) of section 34 and in sections 42 and 43, does not include a Court of the Judicial Commissioner, and, in relation to a State Bar Council, means,

(i)

in the case of a Bar Council constituted for a State or for a State and one or more Union territories, the High Court for the State;

(ii)

in the case of the Bar Council constituted for Delhi, the High Court of Delhi;

(h)

law graduate means a person who has obtained a bachelors degree in law from any University established by law in India;

(i)

legal practitioner means an advocate, or vakil of any High Court, a pleader, mukhtar or revenue agent;

(j)

prescribed means prescribed by rules made under this Act;

(k)

roll means a roll of advocates prepared and maintained under this Act;

(l)

State does not include a Union territory;

(m)

State Bar Council means a Bar Council constituted under section 3;

(n)

State roll means a roll of advocates prepared and maintained by State Bar Council under section 17.

(2)

[Any reference in this Act to a law which is not in force in the State of Jammu and Kashmir or in the Union territory of Goa, Daman and Diu, shall, in relation to that State or that territory, be construed as a reference to the corresponding law, if any, in force in that State or that territory, as the case may be.]

[Inserted by Act 60 of 1973, Section 3 (w.e.f. 31.1.1974).]

Chapter II

Bar Councils

3.

State Bar Councils.

(1)

There shall be a Bar Council

(a)

for each of States of Andhra Pradesh, Bihar, Gujarat, [Jammu and Kashmir]

[Inserted by Act 60 of 1973, Section 4 (w.e.f. 31.1.1974).]

, [Jharkhand]

[Inserted by Act

30 of 2000

, Section 28 (w.e.f. 15.11.2000).]

, [Madhya Pradesh and Chhattisgarh]

[Substituted by Act 28 of 2000, Section 24. for " and Madhya Pradesh" (w.e.f. 1.11.2000).]

, [* * *]

[The word " Madras" omitted by Act 26 of 1968, Section 3 and Sch.]

, [* * *] [[The word

" Maharashtra" omitted by Regulation 8 of 1963, Section 12 (w.e.f.1.7.1965).]], [Karnataka]

[Substituted by the Mysore State (Alteration of Name) Adaptions of Laws on Union Subjects) Ordeeeeeer, 1974, for "Mysore" (w.e.f. 1.11.1973).]

, Orissa, Rajasthan, [Uttar Pradesh]

[Substituted by Act

29 of 2000

, Section 29, for " and Uttar Pradesh" (w.e.f. 9.11.2000).]

[Uttarakhand, Meghalaya, Manipur and Tripura]

[Substituted for the words of "and Uttaranchal" Act No. 26 of 2012]

to be known as the Bar Council of that State;

(b)

[for the States of Arunachal Pradesh, Assam, Mizoram and Nagaland to be known as the Bar Council of Arunachal Pradesh, Assam, Mizoram and Nagaland;]

[Substituted by Act No. 26 of 2012]

(c)

for the State of Kerala and the Union territory of [Lakshadweep,]

[Substituted by Act

34 of 1973

, Section 5, for " Laccadive, Minicoy and Admindivi islands" .]

to be known as the Bar Council of Kerala;

(cc)

[] for the [State of Tamil Nadu]

[Inserted by Act 26 of 1968, Section 3 and Sch.]

and the Union territory of Pondicherry, to be known as the Bar Council of Madras;]

(ccc)

[for the States of Maharashtra and Goa and the Union territories of Dadra and Nagar Haveli and Daman and Diu, to be known as the Bar Council of Maharashtra and Goa;]

[Substituted by Act 18 of 1987, Section 21, for Clause (ccc) as initially inserted by Regn, 8 of 1963, Section 12 and relettered by Act 26 of 1968, Section 3 and Sch. and subsequently amended by Act 60 of 1973, Section 4.]

(d)

[for the States of Punjab and Haryana and the Union territory of Chandigarh, to be known as the Bar Council of Punjab and Haryana;

[Substituted by Act

53 of 1970

, Section 24, for Clause (d) (w.e.f. 25.1.1971).]

(dd)

for the State of Himachal Pradesh, to be known as the Bar Council of Himachal Pradesh;]

(e)

for the State of West Bengal and the [Union territory of Andaman and Nicobar Islands]

[Substituted by Act

81 of 1971

, Section 34, for " Union territories of Tripura and the Andaman and Nicobar Islands" (w.e.f. 21.1.1972).]

, to be known as the Bar Council of West Bengal; and

(f)

for the Union territory of Delhi, to be known as the Bar Council of Delhi.

(2)

a State Bar Council shall consist of the following members, namely:

(a)

in the case of the State Bar Council of Delhi, the Additional Solicitor-General of India, ex officio, [in the case of the State Bar Council of Assam, Arunachal Pradesh, Mizoram and Nagaland, the Advocate-General of each of the States of Assam, Arunachal Pradesh, Mizoram and Nagaland]

[Substituted by "in the case of the State Bar Council of Assam, Nagaland, Meghalaya, Manipur and Tripura, the Advocate-General of each of the States of Assam, Manipur, Meghalaya, Nagaland and Tripura" Act No. 26 of 2012]

, ex officio; [in the case of the State Bar Council of Punjab and Haryana, the Advocate-General of each of the States of Punjab and Haryana, ex officio]

[Inserted by Act 60 of 1973, Section 4 (w.e.f. 31.1.1974).]

; and in the case of any other State Bar Council, the Advocate-General of the State, ex officio;

(b)

[in the case of a State Bar Council with an electorate not exceeding five thousand, fifteen members, in the case of a State Bar Council with an electorate exceeding five thousand but not exceeding ten thousand, twenty members, and in

the case of the State Bar Council with an electorate exceeding ten thousand, twenty-five members, elected in accordance with the system of proportional representation by means of the single transferable vote from amongst advocates on the electoral roll of the State Bar Council:]

[Substituted by Act 60 of 1973, Section 4, for Clause (b) (w.e.f. 31.1.1974).]

[Provided that as nearly as possible one-half of such elected members shall subject to any rules that may be made in this behalf by the Bar Council of India, be persons who have for at least ten years been advocates on a State roll, and in computing the said period of ten years in relation to any such person, there shall be included any period during which the person has been an advocate enrolled under the Indian Bar Councils Act, 1926 (

38 of 1926

).]

[Inserted by Act 21 of 1964, Section 2 (w.e.f. 16.5.1964).]

(3)

[There shall be a Chairman and a Vice-Chairman of each State Bar Council elected by the Council in such manner as may be prescribed.

(3-A) Every person holding office as Chairman or as Vice-Chairman of any State Bar Council immediately before the commencement of the Advocates (Amendment) Act, 1977 (38 of 1977) shall, on such commencement, cease to hold office as Chairman or Vice-Chairman, as the case may be:

Provided that every such person shall continue to carry on the duties of his office until the Chairman or the Vice-Chairman, as the case may be, of each State Bar Council, elected after the commencement of the Advocates (Amendment) Act, 1977 (38 of 1977), assumes charge of the office.]

[Substituted by Act 38 of 1977, Section 2, for sub-sections (3) and (3-A) (w.e.f. 31.10.1977).]

(4)

[An advocate shall be disqualified from voting at an election under sub-section (2)

or for being chosen as, and for being, a member of a State Bar Council, unless he possesses such qualifications or satisfies such conditions as may be prescribed in this behalf by the Bar Council of India, and subject to any such rules that may be made, an electoral roll shall be prepared and revised from time to time by each State Bar Council.

(5)

Nothing in the proviso to sub-section (2) shall affect the term of office of any member elected before the commencement of the Advocates (Amendment) Act, 1964 (21 of 1964), but every election after such commencement shall be held in accordance with the provisions of the rules made by the Bar Council of India to give effect to the said proviso.]

[Inserted by Act No. 21 of 1964, (w.e.f. 16.5.1964).]

(6)

[Nothing in clause (b) of sub-section (2) shall affect the representation of elected members in any State Bar Council as constituted immediately before the commencement of the Advocates (Amendment) Act, 1973 (60 of 1973), until that State Bar Council is reconstituted in accordance with the provisions of this Act.]

[Inserted by Act 60 of 1973, Section 5 (w.e.f. 31.1.1974).]

Additional Information - North-Eastern Areas ?

As per North-Eastern Areas (Reorganisation) And Other Related Laws (Amendment) Act, No. 26 of 2012

10. Special provision relating to Bar councils and advocates.- (1) Any person who immediately before the commencement of the North-Eastern Areas (Reorganisation) and Other Related Laws (Amendment) Act, 2012 is an advocate on the roll of the Bar Council of the States of Assam, Nagaland, Meghalaya, Manipur and Tripura may give his option in writing, within one year from the commencement of the North-Eastern Areas (Reorganisation) and Other Related Laws (Amendment) Act, 2012 to the Bar Council of such State, to transfer his name on the roll of the Bar Council of any one State among the States of Meghalaya, Manipur and Tripura and notwithstanding anything contained in the Advocates Act, 1961 and the rules made thereunder, upon such option so given his name shall be deemed to have been transferred on the roll of the Bar Council of such State with effect from the date of the option so given for the purposes of the said Act and the rules made thereunder.

(2) The persons other than the advocates who are entitled immediately before the commencement of the North-Eastern Areas (Reorganisation) and Other Related Laws (Amendment) Act, 2012, to practise in the common High Court or any subordinate Court thereof shall, on and after the commencement of the North-Eastern Areas (Reorganisation) and Other Related Laws (Amendment) Act, 2012, be recognised as such persons entitled also to practise in the High Court of

Meghalaya, the High Court of Manipur and the High Court of Tripura or any subordinate Court thereof, as the case may be.

(3) The right of audience in the High Court of Meghalaya, the High Court of Manipur and the High Court of Tripura shall be regulated in accordance with the like principles as immediately before the commencement of the North-Eastern Areas (Reorganisation) and Other Related Laws (Amendment) Act, 2012 are in force with respect to the right of audience in the common High Court.

11. Right to appear or to act in proceedings transferred to High Courts of Meghalaya, Manipur and Tripura.- Any person who, immediately before the commencement of the North-Eastern Areas (Reorganisation) and Other Related Laws (Amendment) Act, 2012, is an advocate entitled to practise or any other person entitled to practise in the common High Court and was authorised to appear in any proceedings transferred from that High Court to the High Court of Meghalaya or the High Court of Manipur or the High Court of Tripura under section 28-1 of the North-Eastern Areas (Reorganisation) Act, 1971 shall have the right to appear in the High Court of Meghalaya, or the High Court of Manipur or the High Court of Tripura, as the case may be, in relation to those proceedings.

4.

Bar Council of India.

(1)

There shall be a Bar Council for the territories to which this Act extends to be known as the Bar Council of India which shall consist of the following members, namely:

(a)

the Attorney-General of India, ex officio;

(b)

the Solicitor-General of India, ex officio;

[* * *]

[Clause (bb) omitted by Act 38 of 1977, Section 3 (w.e.f. 31.10.1977).]

(c)

one member elected by each State Bar Council from amongst its members.

[(1-A) No person shall be eligible for being elected as a member of the Bar Council of India unless he possesses the qualifications specified in the proviso to sub-section (2) of section 3.]

[Inserted by Act 60 of 1973, Section 5 (w.e.f. 31.1.1974)]

(2)

[There shall be a Chairman and a Vice-Chairman of the Bar Council of India elected by the Council in such manner as may be prescribed.

(2-A) A person holding office as Chairman or as Vice-Chairman of the Bar Council of India immediately before the commencement of the Advocates (Amendment) Act, 1977 (38 of 1977), shall, on such commencement, cease to hold office as Chairman or Vice-Chairman, as the case may be:

Provided that such person shall continue to carry on the duties of his office until the Chairman or the Vice-Chairman, as the case may be, of the Council, elected after the commencement of the Advocates (Amendment) Act, 1977 (38 of 1977), assumes charge of the office.]

[Substituted by Act 38 of 1977, Section 3, for sub-Sections (2) and (2-A) (w.e.f. 31.10.1977)]

(3)

[The term of office of a member of the Bar Council of India elected by the State Bar Council shall

(i)

in the case of a member of a State Bar Council who holds office ex officio, be two years from the date of his election [or till he ceases to be a member of the State Bar Council, whichever is earlier]; and

(ii)

in any other case, be for the period for which he holds office as a member of the State Bar Council:

Provided that every such member shall continue to hold office as a member of the Bar Council of India until his successor is elected.]

[Inserted by Act 21 of 1964, Section 3.]

5.

Bar Council to be body corporate.

- Every Bar Council shall be a body corporate having perpetual succession and a common seal, with power to acquire and hold property, both movable and immovable, and to contract, and may by the name by which it is known sue and be sued.

6.

Functions of State Bar Councils.

(1)

The functions of a State Bar Council shall be

(a)

to admit persons as advocates on its roll;

(b)

to prepare and maintain such roll;

(c)

to entertain and determine cases of misconduct against advocates on its roll;

(d)

to safeguard the rights, privileges and interests of advocates on its roll;

(dd)

[to promote the growth of Bar Associations for the purposes of effective implementation of the welfare schemes referred to in clause (a) of sub-section (2) of this section and clause (a) of sub-section (2) of section 7;]

[Inserted by Act 70 of 1993, Section 2 (w.e.f. 26.1.1993)]

(e)

to promote and support law reform;

(ee)

[to conduct seminars and organise talks on legal topics by eminent jurists and publish journals and paper of legal interest;

[Inserted by Act 60 of 1973, Section 6 (w.e.f. 31.1.1974)]

(eee)

to organise legal aid to the poor in the prescribed manner;]

(f)

to manage and invest the funds of the Bar Council;

(g)

to provide for the election of its members;

(gg)

[to visit and inspect Universities in accordance with the directions given under clause (i) of sub-section (1) of section 7;]

[Inserted by Act 70 of 1993, Section 2 (w.e.f. 26.1.1993)]

(h)

to perform all other functions conferred on it by or under this Act;

(i)

to do all other things necessary for discharging the aforesaid functions.

(2)

[A State Bar Council may constitute one or more funds in the prescribed manner for the purpose of

(a)

giving financial assistance to organise welfare schemes for the indigent, disabled or other advocates;

(b)

giving legal aid or advice in accordance with the rules made in this behalf;

(c)

[establishing law libraries.]

[Substituted by Act 60 of 1973, Section 6, for sub-Section (2) (w.e.f. 31.1.1974)]

(3)

A State Bar Council may receive any grants, donations, gifts or benefactions for all or any of the purposes specified in sub-section (2) which shall be credited to the appropriate fund or funds constituted under that subsection.]

7.

Functions of Bar Council of India.

- [(1)]

[Section 7 renumbered as sub-Section (1) thereof by Act 60 of 1973, Section 7 (w.e.f. 31.1.1974)]

The functions of the Bar Council of India shall be

[* * *]

[Cl.(a) omitted by Act 60 of 1973, Section 7 (w.e.f. 31.1.1974)]

(b)

to lay down standards of professional conduct and etiquette for advocates;

(c)

to lay down the procedure to be followed by its disciplinary committee and the disciplinary committee of each State Bar Council;

(d)

to safeguard the rights, privileges and interests of advocates;

(e)

to promote and support law reform;

(f)

to deal with and dispose of any matter arising under this Act, which may be referred to it by a State Bar Council;

(g)

to exercise general supervision and control over State Bar Councils;

(h)

to promote legal education and to lay down standards of such education in consultation with the Universities in India imparting such education and the State Bar Councils;

(i)

to recognise Universities whose degree in law shall be a qualification for enrolment as an advocate and for that purpose to visit and inspect Universities [or cause the State Bar Councils to visit and inspect Universities in accordance with such directions as it may give in this behalf]

[Inserted by Act 70 of 1993, Section 3 (w.e.f. 26.12.1993).]

;

(ia)

[to conduct seminars and organise talks on legal topics by eminent jurists and publish journals and papers of legal interest;

[Inserted by Act 60 of 1973, Section 7 (w.e.f. 31.1.1974).]

(b)

to organise legal aid to the poor in the prescribed manner;

(c)

to recognise on a reciprocal basis foreign qualifications in law obtained outside India for the purpose of admission as an advocate under this Act;]

(j)

to manage and invest the funds of the Bar Council;

(k)

to provide for the election of its members;

(l)

to perform all other functions conferred on it by or under this Act;

(m)

to do all other things necessary for discharging the aforesaid functions;

(2)

[The Bar Council of India may constitute one or more funds in the prescribed manner for the purpose of

(a)

giving financial assistance to organise welfare schemes for indigent, disabled or other advocates;

(b)

giving legal aid or advice in accordance with the rules made in this behalf;]

(c)

[establishing law libraries.]

[Inserted by Act 70 of 1993, Section 3 (w.e.f. 26.12.1993)]

(3)

[The Bar Council of India may receive any grants, donations, gifts or benefactions for all or any of the purposes specified in sub-section (2) which shall be credited to the appropriate fund or funds constituted under that sub-section.]

[Inserted by Act 60 of 1973, Section 7 (w.e.f. 31.1.1974)]

7A.

[Membership in international bodies.

[Inserted by Act 60 of 1973, Section 8 (w.e.f. 31.1.1974).]

- The Bar Council of India may become a member of international legal bodies such as the International Bar Association or the International Legal Aid Association, contribute such sums as it thinks fit to such bodies by way of subscription or otherwise and authorise expenditure on the participation of its representatives in any international legal conference or seminar.]

[Inserted by Act 60 of 1973, Section 7 (w.e.f. 31.1.1974).]

8.

[Term of office of members of State Bar Council.

[Substituted by Act 70 of 1993, Section 4, for Section 8 (w.e.f. 26.12.1993).]

- The term of office of an elected member of a State Bar Council (other than an elected member thereof referred to in section 54) shall be five years from the date of publication of the result of his election:

Provided that where a State Bar Council fails to provide for the election of its members before the expiry of the said term, the Bar Council of India may, by order, for reasons to be recorded in writing, extend the said term for a period not exceeding six months.

8A.

Constitution of Special Committee in the absence of election.

(1)

Where a State Bar Council fails to provide for the election of its members before the expiry of the term of five years or the extended term, as the case may be, referred to in section 8, the Bar Council of India shall, on and from the date immediately following the day of such expiry, constitute a Special Committee consisting of

(i)

the ex officio member of the State Bar Council referred to in clause (a) of sub-section (2) of section 3 to be the Chairman:

Provided that where there are more than one ex officio members, the senior-most amongst them shall be the Chairman; and

(ii)

two members to be nominated by the Bar Council of India from amongst advocates on the electoral roll of the State Bar Council,

to discharge the functions of the State Bar Council until the Bar Council is constituted under this Act.

(2)

On the constitution of the Special Committee and until the State Bar Council is constituted

(a)

all properties and assets vesting in the State Bar Council shall vest in the Special Committee;

(b)

all rights, liabilities and obligations of the State Bar Council, whether arising out of any contract or otherwise, shall be the rights, liabilities and obligations of the Special Committee;

(c)

all proceedings pending before the State Bar Council in respect of any disciplinary matter or otherwise, shall stand transferred to the Special Committee.

(3)

The Special Committee constituted under sub-section (1) shall, in accordance with such directions as the Bar Council of India may give to it in this behalf, hold election to the State Bar Council within a period of six months from the date of its

constitution under sub-section (1), and where, for any reason the Special Committee is not in a position to conduct election within the said period of six months, the Bar Council of India may, for reasons to be recorded by it in writing, extend the said period.]

9.

[Disciplinary committees.

[Substituted by Act 21 of 1964, Section 5, for Section 9.]

(1)

A Bar Council shall constitute one or more disciplinary committees, each of which shall consist of three persons of whom two shall be persons elected by the Council from amongst its members and the other shall be a person co-opted by the Council from amongst advocates who possess the qualifications specified in the proviso to sub-section (2) of section 3 and who are not members of the Council, and the senior-most advocate amongst the members of a disciplinary committee shall be the Chairman thereof.

(2)

Notwithstanding anything contained in sub-section (1), any disciplinary committee constituted prior to the commencement of the Advocates (Amendment) Act, 1964 (21 of 1964) may dispose of the proceedings pending before it as if this section had not been amended by the said Act.]

9A.

[Constitution of legal aid committees.

[Substituted by Act 60 of 1973, Section 11, for subSection (3) (w.e.f. 31.1.1974).]

(1)

A Bar Council may constitute one or more legal aid committees each of which shall consist of such number of members, not exceeding nine but not less than five, as may be prescribed.

(2)

The qualifications, the method of selection and the term of office of the members of legal aid committee shall be such as may be prescribed.]

10.

Constitution of committees other than disciplinary committees.

(1)

a State Bar Council shall constitute the following standing committees, namely:

(a)

an executive committee consisting of five members elected by the Council from amongst its members;

(b)

an enrolment committee consisting of three members elected by the Council from amongst its members.

(2)

The Bar Council of India shall constitute the following standing committees, namely:

(a)

an executive committee consisting of nine members elected by the Council from amongst its members;

(b)

a legal education committee consisting of ten members, of whom five shall be persons elected by the Council from amongst its members and five shall be persons co-opted by the Council who are not members thereof.

(3)

a State Bar Council and the Bar Council of India may constitute from amongst its members such other committees as it may deem necessary for the purpose of carrying out the provisions of this Act.

10A.

[Transaction of business by Bar Councils and committees thereof.

[Inserted by Act 60 of 1973, Section 10 (w.e.f. 31.1.1974).]

- [(1) The Bar Council of India shall meet at New Delhi or at such other place as it may, for reasons to be recorded in writing, determine.

(2)

a State Bar Council shall meet at its headquarters or at such other place as it may, for reasons to be recorded in writing, determine.]

(3)

The committees other than disciplinary committees constituted by the Bar Councils shall meet at the headquarters of the respective Bar Councils.

(4)

Every Bar Council and every committee thereof except the disciplinary committees shall observe such rules of procedure in regard to the transaction of business at their meetings as may be prescribed.]

(5)

The disciplinary committees constituted under section 9 shall meet at such times and places and shall observe such rules of procedure in regard to the transaction of business at their meetings as may be prescribed.

10B.

□

[Inserted by Act 21 of 1964, Section 6 later Section 10-A renumbered as Section 10-B by Act 60 of 1973, Section 10 (w.e.f. 31.1.1974).]

Disqualification of Members of Bar Council.

- An elected member of a Bar Council shall be deemed to have vacated his office if he is declared by the Bar Council of which he is a member to have been absent without sufficient excuse from three consecutive meetings of such Council, or if his name is, for any cause, removed from the roll of advocates or if he is otherwise disqualified under any rule made by the Bar Council of India.]

11.

Staff of Bar Council.

(1)

Every Bar Council shall appoint a Secretary and may appoint an accountant and such number of other persons on its staff as it may deem necessary.

(2)

The Secretary and the accountant, if any, shall possess such qualifications as may be prescribed.

12.

Accounts and audit.

(1)

Every Bar Council shall cause to be maintained such books of accounts and other books in such form and in such manner as may be prescribed.

(2)

The accounts of a Bar Council shall be audited by auditors duly qualified to act as auditors of companies under the Companies Act, 1956 (

1 of 1956

), at such times and in such manner as may be prescribed.

(3)

[As soon as may be practicable at the end of each financial year, but not later than the 31st day of December of the year next following, a State Bar Council shall send a copy of its accounts together with a copy of the report of the auditors thereon to the Bar Council of India and shall cause the same to be published in the Official Gazette.]

[Substituted by Act 60 of 1973, Section 11, for sub-Section (3) (w.e.f. 31.1.1974).]

(4)

As soon as may be practicable at the end of each financial year, but not later than the 31st day of December of the year next following, the Bar Council of India shall send a copy of its accounts together with a copy of the report of the auditors thereon to the Central Government and shall cause the same to be published in the Gazette of India.

13.

Vacancies in Bar Council and committees thereof not to invalidate action taken.

- No acts done by a Bar Council or any committee thereof shall be called in question on the ground merely of the existence of any vacancy in, or any defect in the constitution of, the Council or committee, as the case may be.

14.

Election to Bar Councils not to be questioned on certain grounds.

- No election of a member to a Bar Council shall be called in question on the ground merely that due notice thereof has

not been given to any person entitled to vote thereat, if notice of the date has, not less than thirty days before that date, been published in the Official Gazette.

15.

Power to make rules.

(1)

A Bar Council may make rules to carry out the purposes of this Chapter.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for

(a)

[the election of members of the Bar Council by secret ballot including the conditions subject to which persons can exercise the right to vote by postal ballot, the preparation and revision of electoral rolls and the manner in which the result of election shall be published;]

[Substituted by Act 60 of 1973, Section 12, for Clause (a) (w.e.f. 31.1.1974).]

[* * *]

[Clause (b) omitted by Act 60 of 1973, Section 5 (w.e.f. 31.1.1974).]

(c)

[the manner of election of the Chairman and the " Vice-Chairman" of the Bar Council;]

[Inserted by Act 38 of 1977, Section 5 (w.e.f. 30.10.1977).]

(d)

the manner in which and the authority by which doubts and disputes as to the validity of an election to the Bar Council [or to the office of the Chairman or Vice-Chairman]

[Inserted by Act 38 of 1977, Section 5 (w.e.f. 30.10.1977).]

shall be finally decided;

[* * *]

[Clause (e) omitted by Act 23 of 1966, Section 3.]

(f)

the filling of casual vacancies in the Bar Council;

(g)

the powers and duties of the Chairman and the Vice-Chairman of the Bar Council;

(ga)

[the constitution of one or more funds by a Bar Council for the purpose of giving financial assistance or giving legal aid or advice referred to in sub-section (2) of section 6 and sub-section (2) of section 7;

[Inserted by Act 60 of 1973, Section 12 (w.e.f. 31.1.1974).]

(gb)

organisation of legal aid and advice to the poor, constitution and functions of committees and sub-committees for that purpose and description of proceedings in connection with which legal aid or advice may be given;]

(h)

the summoning and holding of meetings of the Bar Council, [* * *]

[The words " the times and places where such meetings are to be held" omitted by Act 60 of 1973, Section 12 (w.e.f. 31.1.1974).]

the conduct of business thereat, and the number of members necessary to constitute a quorum;

(i)

the constitution and functions of any committee of the Bar Council and the term of office of members of any such committee;

(j)

the summoning and holding of meetings, the conduct of business of any such committee, and the number of members necessary to constitute a quorum;

(k)

the qualifications and the conditions of service of the secretary, the accountant and the other employees of the Bar Council;

(l)

the maintenance of books of accounts and other books by the Bar Council;

(m)

the appointment of auditors and the audit of the accounts of the Bar Council;

(n)

the management and investment of the funds of the Bar Council.

(3)

No rules made under this section by a State Bar Council shall have effect unless they have been approved by the Bar Council of India.

Chapter III

Admission And Enrolment Of Advocates

16.

Senior and other advocates.

(1)

There shall be two classes of advocates, namely, senior advocates and other advocates.

(2)

An advocate may, with his consent, be designated as senior advocate if the Supreme Court or a High Court is of opinion that by virtue of his ability [standing at the Bar or special knowledge or experience in law]

[Substituted by Act 60 of 1973, Section 13, for " experience and standing at the Bar" (w.e.f. 31.1.1974).]

he is deserving of such distinction.

(3)

Senior advocates shall, in the matter of their practice, be subject to such restrictions as the Bar Council of India may, in the interest of the legal profession, prescribe.

(4)

An advocate of the Supreme Court who was a senior advocate of that Court immediately before the appointed day shall, for the purposes of this section, be deemed to be a senior advocate:

[Provided that where any such senior advocate makes an application before the 31st December, 1965 to the Bar Council maintaining the roll in which his name has been entered that he does not desire to continue as a senior advocate, the Bar Council may grant the application and the roll shall be altered accordingly.]

[Inserted by Act 21 of 1964, Section 8.]

17.

State Bar Councils to maintain roll of advocates.

(1)

Every State Bar Council shall prepare and maintain a roll of advocates in which shall be entered the names and addresses of

(a)

all persons who were entered as advocates on the roll of any High Court under the Indian Bar Councils Act, 1926 (38 of 1926

), immediately before the appointed day [including persons, being citizens of India, who before the 15th day of August, 1947, were enrolled as advocates under the said Act in any area which before the said date was comprised within India as defined in the Government of India Act, 1935, and who at any time]

[Substituted by Act 60 of 1973, Section 14, for " and who, within the prescribed time" (w.e.f. 31.1.1974).]

express an intention in the prescribed manner to practise within the jurisdiction of the Bar Council;

(b)

all other persons who are admitted to be advocates on the roll of the State Bar Council under this Act on or after the appointed day.

(2)

Each such roll of advocates shall consist of two parts, the first part containing the names of senior advocates and the second part, the names of other advocates.

(3)

Entries in each part of the roll of advocates prepared and maintained by a State Bar Council under this section shall be in the order of seniority, [and, subject to any rule that may be made by the Bar Council of India in this behalf, such

seniority shall be determined]

[Substituted by Act 21 of 1964, Section 9, for " and such seniority shall be determined."]

as follows:

(a)

the seniority of an advocate referred to in clause (a) sub-section (1) shall be determined in accordance with his date of enrolment under the Indian Bar Councils Act, 1926 (

38 of 1926

);

(b)

the seniority of any person who was a senior advocate of the Supreme Court immediately before the appointed day shall, for the purposes of the first part of the State roll, be determined in accordance with such principles as the Bar Council of India may specify;

[* * *]

[Clause (c) omitted by Act 60 of 1973, Section 14 (w.e.f. 31.1.1974).]

(d)

the seniority of any other person who, on or after the appointed day, is enrolled as a senior advocate or is admitted as an advocate shall be determined by the date of such enrolment or admission, as the case may be;

(e)

[notwithstanding anything contained in clause (a), the seniority of an attorney enrolled whether before or after the commencement of the Advocates (Amendment) Act, 1980 (47 of 1980) as an advocate shall be determined in accordance with the date of his enrolment as an attorney.]

[Inserted by Act 47 of 1980, Section 2 (w.e.f. 29.11.1980).]

(4)

No person shall be enrolled as an advocate on the roll of more than one State Bar Council.

18.

Transfer of name from one State roll to another.

(1)

Notwithstanding anything contained in section 17, any person whose name is entered as an advocate on the roll of any State Bar Council may make an application in the prescribed form to the Bar Council of India for the transfer of his name from the roll of that State Bar Council to the roll of any other State Bar Council and, on receipt of any such application the Bar Council of India shall direct that the name of such person shall, without the payment of any fee, be removed from the roll of the first mentioned State Bar Council and entered in the roll of the other State Bar Council and the State Bar Councils concerned shall comply with such direction:

[Provided that where any such application for transfer is made by a person against whom any disciplinary proceeding is pending or where for any other reason it appears to the Bar Council of India that the application for transfer has not been made bona fide and that the transfer should not be made, the Bar Council of India may, after giving the person making the application an opportunity of making a representation in this behalf, reject the application.]

[Added by Act 21 of 1964, Section 10.]

(2)

For the removal of doubts it is hereby declared that where on an application made by an advocate under sub-section (1), his name is transferred from the roll of one State Bar Council to that of another, he shall retain the same seniority in the latter roll to which he was entitled in the former roll.

19.

State Bar Councils to send copies of rolls of advocates to the Bar Council of India.

- Every State Bar Council shall send to the Bar Council of India an authenticated copy of the roll of advocates prepared by it for the first time under this Act and shall thereafter communicate to the Bar Council of India all alterations in, and additions to, any such roll, as soon as the same have been made.

20.

[Special provision for enrolment of certain Supreme Court advocates.

[Substituted by Act 60 of 1973, Section 15, for Section 20 (w.e.f. 31.1.1974).]

(1)

Notwithstanding anything contained in this Chapter, every advocate who was entitled as of right to practise in the Supreme Court immediately before the appointed day and whose name is not entered in any State roll may, within the prescribed time, express his intention in the prescribed form to the Bar Council of India for the entry of his name in the roll of a State Bar Council and on receipt thereof the Bar Council of India shall direct that the name of such advocate shall, without payment of any fee, be entered in the roll of that State Bar Council, and the State Bar Council concerned shall comply with such direction.

(2)

Any entry in the State roll made in compliance with the direction of the Bar Council of India under sub-section (1) shall be made in the order of seniority determined in accordance with the provisions of sub-section (3) of section 17.

(3)

Where an advocate referred to in sub-section (1) omits or fails to express his intention within the prescribed time, his name shall be entered in the roll of the State Bar Council of Delhi.]

21.

Disputes regarding seniority.

(1)

Where the date of seniority of two or more persons is the same, the one senior in age shall be reckoned as senior to the other.

(2)

[Subject as aforesaid, if any dispute arises with respect to the seniority of any person, it shall be referred to the State Bar Council concerned for decision.]

[Substituted by Act 60 of 1973, Section 16, for sub-Section (2) (w.e.f. 31.1.1974).]

22.

[Certificate of enrolment.

[Substituted by Act 60 of 1973, Section 17, for Section 22 (w.e.f 31.1.1974).]

(1)

There shall be issued a certificate of enrolment in the prescribed form by the State Bar Council to every person whose name is entered in the roll of advocates maintained by it under this Act.

(2)

Every person whose name is so entered in the State roll shall notify any change in the place of his permanent residence to the State Bar Council concerned within ninety days of such change.]

23.

Right of pre-audience.

(1)

The Attorney-General of India shall have pre-audience over all other advocates.

(2)

Subject to the provisions of sub-section (1), the Solicitor-General of India shall have pre-audience over all other advocates.

(3)

Subject to the provisions of sub-sections (1) and (2), the Additional Solicitor-General of India shall have pre-audience over all other advocates.

[(3-A) Subject to the provisions of sub-sections (1), (2) and (3), the second Additional Solicitor-General of India shall have pre-audience over all other advocates.]

[Inserted by Act 47 of 1980, Section 3 (w.e.f. 29.11.1980).]

(4)

Subject to the provisions of sub-sections (1), [(2), (3) and (3-A)]

[Substituted by Act 47 of 1980, Section 3, for " (2) and (3)" (w.e.f. 29.11.1980).]

, the Advocate-General of any State shall have pre-audience over all other advocates, and the right of pre-audience among Advocates-General inter se shall be determined by their respective seniority.

(5)

Subject as aforesaid

(i)

senior advocates shall have pre-audience over other advocates, and

(ii)

the right of pre-audience of senior advocates and other advocates inter se shall be determined by their respective seniority.

24.

Persons who may be admitted as advocates on a State roll.

(1)

Subject to the provisions of this Act, and the rules made thereunder, a person shall be qualified to be admitted as an advocate on a State roll, if he fulfils the following conditions, namely:

(a)

he is a citizen of India:

Provided that subject to the other provisions contained in this Act, a national of any other country may be admitted as an advocate on a State roll, if citizens of India, duly qualified, are permitted to practise law in that other country;

(b)

he has completed the age of twenty-one years;

(c)

he has obtained a degree in law

(i)

before the [12th day of March, 1967,]

[Substituted by Act 60 of 1973, Section 18, for " 28th day of February, 1963" (w.e.f. 31.1.1974).]

from any University in the territory of India; or

(ii)

before the 15th August, 1947, from any University in any area which was comprised before that date within India as defined by the Government of India Act, 1935; or

(iii)

[after the 12th day of March, 1967, save as provided in sub-clause (iii-a), after undergoing a three year course of study in law from any University in India which is recognised for the purposes of this Act by the Bar Council of India; or]

[Substituted by Act 60 of 1973, Section 18, for sub-Cl(iii) (w.e.f. 31.1.1974).]

(iii-a) after undergoing a course of study in law, the duration of which is not less than two academic years commencing from the academic year 1967-68 or any earlier academic year from any University in India which is recognised for the purposes of this Act by the Bar Council of India; or

(iv)

[in any other case, from any University outside the territory of India, if the degree is recognised for the purposes of this Act by the Bar Council of India or;]

[Inserted by Act 21 of 1964, Section 13.]

[he is a barrister and is called to the Bar on or before the 31st day of December, 1976;

[or has passed the article clerks examination or any other examination specified by the High Court at Bombay or Calcutta for enrolment as an attorney of that High Court;]

[Substituted by Act 60 of 1973, Section 18, for " he is a barrister" (w.e.f. 31.1.1974).]

or has obtained such other foreign qualification in law as is recognised by the Bar Council of India for the purpose of admission as an advocate under this Act;]

[* * *]

[Clause (d) omitted by Act 60 of 1973, Section 18 (w.e.f. 31.1.1974).]

(e)

he fulfils such other conditions as may be specified in the rules made by the State Bar Council under this Chapter;

(f)

[he has paid, in respect of the enrolment, stamp duty, if any, chargeable under the Indian Stamp Act, 1899 (2 of 1899), and an enrolment fee payable to the State Bar Council]

[Substituted by Act 60 of 1973, Section 18, for Clause (f) (w.e.f. 31.1.1974).]

of [six hundred rupees and to the Bar Council of India, one hundred and fifty rupees by way of a bank draft drawn in favour of that Council] [[

Substituted by Act 70 of 1993, Section 6, for " two hundred and fifty rupees" (w.e.f. 26.12.1993).]]:

Provided that where such person is a member of the Scheduled Castes or the Scheduled Tribes and produces a certificate to that effect from such authority as may be prescribed, the enrolment fee payable by him to the State Bar Council shall be [one hundred rupees and to the Bar Council of India, twenty-five rupees]

[Substituted by Act 70 of 1993, Section 6, for " one hundred and twenty-five rupees" (w.e.f. 26.12.1993).]

[Explanation

[Inserted by Act 14 of 1962, Section 2.]

.For the purposes of this sub-section, a person shall be deemed to have obtained a degree in law from a University in India on the date on which the results of the examination for that degree are published by the University on its notice board or otherwise declaring him to have passed that examination.]

(2)

Notwithstanding anything contained in sub-section (1), [a vakil or a pleader who is a law graduate]

[Substituted by Act 21 of 1964, Section 64, Section 13, for certain words.]

may be admitted as an advocate on a State roll, if he

(a)

makes an application for such enrolment in accordance with the provisions of this Act, not later than two years from the appointed day; and

(b)

fulfils the conditions specified in clauses (a), (b), (e) and (f) of sub-section (1).

(3)

[Notwithstanding anything contained in sub-section (1) a person who]

[Inserted by Act 21 of 1974, Section 13.]

(a)

[* * *]

[The words and figures " before the 31st day of March, 1964" omitted by Act 33 of 1968, Section 2 (w.e.f. 5.6.1968).]

has, for at least three years, been a vakil or a pleader or a mukhtar, or, was entitled at any time to be enrolled under any law [* * *]

[The words " then in force" omitted by Act 33 of 1968, Section 2 (w.e.f. 5.6.1968)]

as an advocate of a High Court (including a High Court of a former Part B State) or of a Court of Judicial Commissioner in any Union territory; or

(aa)

[before the 1st day of December, 1961, was entitled otherwise than as an advocate to practise the profession of law (whether by way of pleading or acting or both) by virtue of the provisions of any law, or who would have been so entitled had he not been in public service on the said date; or]

[Inserted by Act 60 of 1973, Section 18 (w.e.f. 31.1.1974).]

[* * *]

[Clause (b) omitted by Act 60 of 1973, Section 18 (w.ef. 31.1.1974).]

(c)

before the 1st day of April, 1937, has been an advocate of any High Court in any area which was comprised within Burma as defined in the Government of India Act, 1935; or

(d)

is entitled to be enrolled as an advocate under any rule made by the Bar Council of India in this behalf, may be admitted as an advocate on a State roll if he

(i)

makes an application for such enrolment in accordance with the provisions of this Act; and

(ii)

fulfils the conditions specified in clauses (a), (b), (e) and (f) of sub-section (1).

(4)

[* * *]

[Sub-Section (4) omitted by Act 107 of 1976, Section 6 (w.e.f. 15.10.1976).]

24A.

[Disqualification for enrolment.

[Inserted by Act 60 of 1973, Section 19 (w.e.f. 31.1.1974).]

(1)

No person shall be admitted as an advocate on a State roll

(a)

if he is convicted of an offence involving moral turpitude;

(b)

if he is convicted of an offence under the provisions of the Untouchability (Offences) Act, 1955 (

22 of 1955

);

(c)

[if he is dismissed or removed from employment or office under the State on any charge involving moral turpitude.

Explanation. In this clause, the expression State shall have the meaning assigned to it under article 12 of the Constitution:]

Provided that the disqualification for enrolment as aforesaid shall cease to have effect after a period of two years has elapsed since his [release or dismissal or, as the case may be, removal.]

[Substituted by Act 70 of 1993, Section 7, for " release" (w.e.f 26.12.1993).]

(2)

Nothing contained in sub-section (1) shall apply to a person who having been found guilty is dealt with under the provisions of the Probation of Offenders Act, 1958 (

20 of 1958

).]

25.

Authority to whom applications for enrolment may be made.

- An application for admission as an advocate shall be made in the prescribed form to the State Bar Council within whose jurisdiction the applicant proposes to practise.

26.

Disposal of applications for admission as an advocate.

(1)

a State Bar Council shall refer every application for admission as an advocate to its enrolment committee, and subject to the provisions of sub-sections (2) and (3) [and to any direction that may be given in writing by the State Bar Council in this behalf]

[Inserted by Act 21 of 1964, Section 14.]

, such committee shall dispose of the application in the prescribed manner:

[Provided that the Bar Council of India may, if satisfied, either on a reference made to it in this behalf or otherwise, that any person has got his name entered on the roll of advocates by misrepresentation as to an essential fact or by fraud or undue influence, remove the name of such person from the roll of advocates after giving him an opportunity of being heard.]

[Inserted by Act 21 of 1964, Section 14.]

(2)

Where the enrolment committee of a State Bar Council proposes to refuse any such application, it shall refer the application for opinion to the Bar Council of India and every such reference shall be accompanied by a statement of the grounds in support of the refusal of the application.

(3)

The enrolment committee of a State Bar Council shall dispose of any application referred to the Bar Council of India under sub-section (2) in conformity with the opinion of the Bar Council of India.

(4)

[Where the enrolment committee of a State Bar Council has refused any application for admission as an advocate on its roll, the State Bar Council shall, as soon as may be, send intimation to all other State Bar Councils about such refusal stating the name, address and qualifications of the person whose application was refused and the grounds for the

refusal.]

[Inserted by Act 21 of 1964, Section 14.]

26A.

[Power to remove names from roll.

[Substituted by Act 60 of 1973, Section 20, for Section 26-A (w.e.f 31.1.1974).]

- A State Bar Council may remove from the State roll the name of any advocate who is dead or from whom a request has been received to that effect.]

27.

Application once refused not to be entertained by another Bar Council except in certain circumstances.

- Where a State Bar Council has refused the application of any person for admission as an advocate on its roll, no other State Bar Council shall entertain an application for admission of such person as an advocate on its roll, except with the previous consent in writing of the State Bar Council which refused the application and of the Bar Council of India.

28.

Power to make rules.

(1)

A State Bar Council may make rules to carry out the purposes of this Chapter.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for

(a)

[the time within which and form in which an advocate shall express his intention for the entry of his name in the roll of a State Bar Council under section 20;]

[Substituted by Act 60 of 1973, Section 21, for Clause (a) (w.e.f. 31.1.1974).]

[* * *]

[Clause (b) omitted by Act 60 of 1973, Section 21 (w.e.f. 31.1.1974).]

(c)

the form in which an application shall be made to the Bar Council for admission as an advocate on its roll and the manner in which such application shall be disposed of by the enrolment committee of the Bar Council;

(d)

the conditions subject to which a person may be admitted as an advocate on any such roll;

(e)

the instalments in which the enrolment fee may be paid.

(3)

No rules made under this Chapter shall have effect unless they have been approved by the Bar Council of India.

Chapter IV

Right To Practise

29.

Advocates to be the only recognised class of persons entitled to practise law.

- Subject to the provisions of this Act and any rules made thereunder, there shall, as from the appointed day, be only one class of persons entitled to practise the profession of law, namely, advocates.

30.

Right of advocates to practise.

- Subject to provisions of this Act, every advocate whose name is entered in the [State roll]

[Substituted by Act 60 of 1973, Section 22, for [common roll" (w.e.f. 31.1.1974).]

shall be entitled as of right to practise throughout the territories to which this Act extends,

(i)

in all Courts including the Supreme Court;

(ii)

before any tribunal or person legally authorised to take evidence; and

(iii)

before any other authority or person before whom such advocate is by or under any law for the time being in force entitled to practise.

31.
Special provision for attorneys.
- [Repealed by the Advocates (Amendment) Act, 1976 (107 of 1976), section 7 (w.e.f. 1-1-1977).]

32.
Power of Court to permit appearances in particular cases.
- Notwithstanding anything contained in this Chapter, any Court, authority, or person may permit any person, not enrolled as an advocate under this Act, to appear before it or him in any particular case.

33.
Advocates alone entitled to practise.
- Except as otherwise provided in this Act or in any other law for the time being in force, no person shall, on or after the appointed day, be entitled to practise in any Court or before any authority or person unless he is enrolled as an advocate under this Act.

34.
Power of High Courts to make rules.

(1)
The High Court may make rules laying down the conditions subject to which an advocate shall be permitted to practise in the High Court and the Courts subordinate thereto.
[(1-A) The High Court shall make rules for fixing and regulating by taxation or otherwise the fees payable as costs by any party in respect of the fees of his adversary's advocate upon all proceedings in the High Court or in any Court subordinate thereto.]
[Inserted by Act 60 of 1973, Section 23 (w.e.f. 31.1.1974).]

(2)
[Without prejudice to the provisions contained in sub-section (1), the High Court at Calcutta may make rules providing for the holding of the Intermediate and the Final examinations for articled clerks to be passed by the persons referred to in section 58-AG for the purpose of being admitted as advocates on the State roll and any other matter connected therewith.]
[Sub-Section (2) omitted by Act 107 of 1976, Section 8 (w.e.f. 1.1.1977) and again inserted by Act 38 of 1977, Section 6 (w.e.f. 30.10.1977).]

[* * *]

[Sub-Section (3) omitted by Act 107 of 1976, Section 8 (w.e.f. 1.1.1977).]

Chapter V

Conduct Of Advocates

35.
Punishment of advocates for misconduct.

(1)
Where on receipt of a complaint or otherwise a State Bar Council has reason to believe that any advocate on its roll has been guilty of professional or other misconduct, it shall refer the case for disposal to its disciplinary committee.
[(1-A) The State Bar Council may, either of its own motion or on application made to it by any person interested, withdraw a proceeding pending before its disciplinary committee and direct the inquiry to be made by any other disciplinary committee of that State Bar Council.]
[Inserted by Act 60 of 1973, Section 24 (w.e.f. 31.1.1974).]

(2)
The disciplinary committee of a State Bar Council [* * *]
[The words " if it does not summarily reject the complaint" omitted by Act 60 of 1973, Section 24 (w.e.f. 31.1.1974).]
shall fix a date for the hearing of the case and shall cause a notice thereof to be given to the advocate concerned and to the Advocate-General of the State.

(3)
The disciplinary committee of a State Bar Council after giving the advocate concerned and the Advocate-General an opportunity of being heard, may make any of the following orders, namely:

(a)
dismiss the complaint or, where the proceedings were initiated at the instance of the State Bar Council, direct that the

proceedings be filed;

(b)

reprimand the advocate;

(c)

suspend the advocate from practice for such period as it may deem fit;

(d)

remove the name of the advocate from the State roll of advocates.

(4)

Where an advocate is suspended from practice under clause (c) of sub-section (3), he shall, during the period of suspension, be debarred from practising in any Court or before any authority or person in India.

(5)

Where any notice is issued to the Advocate-General under sub-section (2), the Advocate-General may appear before the disciplinary committee of the State Bar Council either in person or through any advocate appearing on his behalf.

[Explanation

[Inserted by Act 21 of 1964, Section 17.]

.In this section, [section 37 and section 38], the expressions Advocate-General and Advocate-General of the State shall, in relation to the Union territory of Delhi, mean the Additional Solicitor General of India.]

36.

Disciplinary powers of Bar Council of India.

(1)

Where on receipt of a complaint or otherwise the Bar Council of India has reason to believe that any advocate [* * *]

[The words [on the common roll" omitted by Act 60 of 1973, Section 25 (w.e.f. 31.1.1974).]

whose name is not entered on any State roll has been guilty of professional or other misconduct, it shall refer the case for disposal to its disciplinary committee.

(2)

Notwithstanding anything contained in this Chapter, the disciplinary committee of the Bar Council of India may, [either of its own motion or on a report by any State Bar Council or on an application made to it by any person interested]

[Substituted by Act 60 of 1973, Section 25, for " of its own motion" (w.e.f. 31.1.1974).]

, withdraw for inquiry before itself any proceedings for disciplinary action against any advocate pending before the disciplinary committee of any State Bar Council and dispose of the same.

(3)

The disciplinary committee of the Bar Council of India, in disposing of any case under this section, shall observe, so far as may be, the procedure laid down in section 35, the references to the Advocate-General in that section being construed as references to the Attorney-General of India.

(4)

In disposing of any proceedings under this section the disciplinary committee of the Bar Council of India may make any order which the disciplinary committee of a State Bar Council can make under sub-section (3) of section 35, and where any proceedings have been withdrawn for inquiry [before the disciplinary committee of the Bar Council of India]

[Substituted by Act 60 of 1973, Section 25, for " before the Bar Council of India" (w.e.f. 31.1.1974).]

, the State Bar Council concerned shall give effect to any such order.

36A.

[Changes in constitution of disciplinary committees.

[Inserted by Act 60 of 1973, Section 26 (w.e.f. 31.1.1974).]

- Whenever in respect of any proceedings under section 35 or section 36, a disciplinary committee of the State Bar Council or a disciplinary committee of the Bar Council of India ceases to exercise jurisdiction and is succeeded by another committee which has and exercises jurisdiction, the disciplinary committee of the State Bar Council or the disciplinary committee of the Bar Council of India, as the case may be, so succeeding may continue the proceedings from the stage at which the proceedings were so left by its predecessor committee.

36B.

Disposal of disciplinary proceedings.

(1)

The disciplinary committee of a State Bar Council shall dispose of the complaint received by it under section 35 expeditiously and in each case the proceedings shall be concluded within a period of one year from the date of the receipt of the complaint or the date of initiation of the proceedings at the instance of the State Bar Council, as the case may be, failing which such proceedings shall stand transferred to the Bar Council of India which may dispose of the same as if it were a proceeding withdrawn for inquiry under sub-section (2) of section 36.

(2)

Notwithstanding anything contained in sub-section (1), where on the commencement of the Advocates (Amendment) Act, 1973 (60 of 1973), any proceedings in respect of any disciplinary matter against an advocate is pending before the disciplinary committee of a State Bar Council, that disciplinary committee of the State Bar Council shall dispose of the same within a period of six months from the date of such commencement or within a period of one year from the date of the receipt of the complaint or, as the case may be, the date of initiation of the proceedings at the instance of the State Bar Council, whichever is later, failing which such other proceedings shall stand transferred to the Bar Council of India for disposal under sub-section (1).]

37.

Appeal to the Bar Council of India.

(1)

Any person aggrieved by an order of the disciplinary committee of a State Bar Council made [under section 35]

[Substituted by Act 21 of 1964, Section 18, for " under sub-section (3) of section 35."]

[or the Advocate-General of the State]

[Inserted by Act 60 of 1973, Section 27 (w.e.f. 31.1.1974).]

may, within sixty days of the date of the communication of the order to him, prefer an appeal to the Bar Council of India.

(2)

Every such appeal shall be heard by the disciplinary committee of the Bar Council of India which may pass such order [(including an order varying the punishment awarded by the disciplinary committee of the State Bar Council)]

[Inserted by Act 60 of 1973, Section 28 (w.e.f. 31.1.1974).]

thereon as it deems fit:

[Provided that no order of the disciplinary committee of the State Bar Council shall be varied by the disciplinary committee of the Bar Council of India so as to prejudicially affect the person aggrieved without giving him reasonable opportunity of being heard.]

[Inserted by Act 60 of 1973, Section 28 (w.e.f. 31.1.1974).]

38.

Appeal to the Supreme Court.

- Any person aggrieved by an order made by the disciplinary committee of the Bar Council of India under section 36 or section 37 [or the Attorney-General of India or the Advocate-General of the State concerned, as the case may be]

[Inserted by Act 60 of 1973, Section 28 (w.e.f. 31.1.1974).]

, may, within sixty days of the date on which the order is communicated to him, prefer an appeal to the Supreme Court and the Supreme Court may pass such order [(including an order varying the punishment awarded by the disciplinary committee of the Bar Council of India)]

[Substituted by Act 60 of 1973, Section 29 (w.e.f. 31.1.1974).]

thereon as it deems fit:

[Provided that no order of the disciplinary committee of the Bar Council of India shall be varied by the Supreme Court so as to prejudicially affect the person aggrieved without giving him a reasonable opportunity of being heard.]

[Substituted by Act 60 of 1973, Section 29 (w.e.f. 31.1.1974).]

39.

[Application of sections 5 and 12 of Limitation Act, 1963.

[Substituted by Act 60 of 1973, Section 29 (w.e.f. 31.1.1974).]

- The provisions of sections 5 and 12 of the Limitation Act, 1963 (

36 of 1963

), shall, so far as may be, apply to appeals under section 37 and section 38.]

40.

Stay of order.

- [(1)]

[Section 40 renumbered as subSection (1) thereof and sub-Section (2) inserted by Act 60 of 1973, Section 30 (w.e.f. 31.1.1974).]

An appeal, made under section 37 or section 38, shall not operate as a stay of the order appealed against, but the disciplinary committee of the Bar Council of India, or the Supreme Court, as the case may be, may, for sufficient cause, direct the stay of such order on such terms and conditions as it may deem fit.

(2)

[Where an application is made for the stay of the order before the expiration of the times allowed for appealing therefrom under section 37 or section 38, the disciplinary committee of the State Bar Council, or the disciplinary committee of the Bar Council of India, as the case may be, may, for sufficient cause, direct the stay of such order on such terms and conditions as it may deem fit.]

[Section 40 renumbered as sub-Section (1) thereof and sub-Section (2) inserted by Act 60 of 1973, Section 30 (w.e.f. 31.1.1974).]

41.

Alteration in roll of advocates.

(1)

Where an order is made under this Chapter reprimanding or suspending an advocate, a record of the punishment shall be entered against his name

(a)

in the case of an advocate whose name is entered in a State roll, in that roll;

[* * *]

[Cl.(b) omitted by Act 60 of 1973, Section 31 (w.e.f. 31.1.1974).]

and where any order is made removing an advocate from practice, his name shall be struck off the State roll [* * *]

[The words " or the common roll, as the case may be" omitted by Act 60 of 1973, Section 31 (w.e.f. 31.1.1974).]

.

(2)

[* * *]

[Sub-Section (2) omitted by Act 60 of 1973, Section 31 (w.e.f. 31.1.1974).]

(3)

Where any advocate is suspended or removed from practice, the certificate granted to him under section 22, in respect of his enrolment shall be recalled.

42.

Powers of disciplinary committee.

(1)

The disciplinary committee of a Bar Council shall have the same powers as are vested in a Civil Court under the Code of Civil Procedure, 1908 (5 of 1908), in respect of the following matters, namely:

(a)

summoning and enforcing the attendance of any person and examining him on oath;

(b)

requiring discovery and production of any documents;

(c)

receiving evidence on affidavits;

(d)

requisitioning any public record or copies thereof from any Court or office;

(e)

issuing commissions for the examination of witnesses or documents; and

(f)

any other matter which may be prescribed:

Provided that no such disciplinary committee shall have the right to require the attendance of

(a)

any presiding officer of a Court except with the previous sanction of the High Court to which such Court is subordinate;

(b)
any officer of a revenue Court except with the previous sanction of the State Government.

(2)
All proceedings before a disciplinary committee of a Bar Council shall be deemed to be judicial proceedings within the meaning of sections 193 and 228 of the Indian Penal Code (45 of 1860), and every such disciplinary committee shall be deemed to be a Civil Court for the purposes of sections 480, 482 and 485 of the [Code of Criminal Procedure, 1898 (5 of 1898).]

[21 Now see the Code of Criminal Procedure, 1973 (2 of 1974), Sections 345(1), 346 and 349.]

(3)
For the purposes of exercising any of the powers conferred by sub-section (1), a disciplinary committee may send to any Civil Court in the territories to which this Act extends, any summons or other process, for the attendance of a witness or the production of a document required by the committee or any commission which it desires to issue, and the Civil Court shall cause such process to be served or such commission to be issued, as the case may be, and may enforce any such process as if it were a process for attendance or production before itself.

(4)
[Notwithstanding the absence of the Chairman or any member of a disciplinary committee on a date fixed for the hearing of a case before it, the disciplinary committee may, if it so thinks fit, hold or continue the proceedings on the date so fixed and no such proceedings and no order made by the disciplinary committee in any such proceedings shall be invalid merely by reason of the absence of the Chairman or member thereof on any such date:
Provided that no final orders of the nature referred to in sub-section (3) of section 35 shall be made in any proceeding unless the Chairman and other members of the disciplinary committee are present.

(5)
Where no final orders of the nature referred to in sub-section (3) of section 35 can be made in any proceeding in accordance with the opinion of the Chairman and the members of a disciplinary committee either for want of majority opinion amongst themselves or otherwise, the case, with their opinion thereon, shall be laid before the Chairman of the Bar Council concerned or if the Chairman of the Bar Council is acting as the Chairman or a member of the disciplinary committee, before the Vice-Chairman of the Bar Council, and the said Chairman or the Vice-Chairman of the Bar Council, as the case may be, after such hearing as he thinks fit, shall deliver his opinion and the final order of the disciplinary committee shall follow such opinion.]

[Inserted by Act 60 of 1973, Section 32 (w.e.f. 31.1.1974).]

42A.

[Powers of Bar Council of India and other committees.

[Inserted by Act 60 of 1973, Section 33 (w.e.f. 31.1.1974).]

- The provisions of section 42 shall, so far as may be, apply in relation to the Bar Council of India, the enrolment committee, the election committee, the legal aid committee, or any other committee of a Bar Council as they apply in relation to the disciplinary committee of a Bar Council.]

43.

Cost of proceedings before a disciplinary committee.

- The disciplinary committee of a Bar Council may make such order as to the costs of any proceedings before it as it may deem fit and any such order shall be executable as if it were an order

(a)
in the case of an order of the disciplinary committee of the Bar Council of India, of the Supreme Court;

(b)
in the case of an order of the disciplinary committee of a State Bar Council, of the High Court.

44.

Review of orders by disciplinary committee.

- The disciplinary committee of a Bar Council may of its own motion or otherwise review any order [within sixty days of the date of that order]

[Inserted by Act 60 of 1973, Section 34 (w.e.f. 31.1.1974).]

passed by it under this Chapter:

Provided that no such order of review of the disciplinary committee of a State Bar Council shall have effect unless it has

been approved by the Bar Council of India.

Chapter VI

Miscellaneous

45.

Penalty for persons illegally practising in Courts and before other authorities.

- Any person who practises in any Court or before any authority or person, in or before whom he is not entitled to practise under the provisions of this Act, shall be punishable with imprisonment for a term which may extend to six months.

46.

Payment of part of enrolment fees to the Bar Council of India.

- [Omitted by the Advocates (Amendment) Act, 1993 (70 of 1993), section 8 (w.e.f. 26-12-1993).]

46A.

[Financial assistance to State Bar Council.

[Inserted by Act 60 of 1973, Section 35 (w.e.f. 31.1.1974).]

- The Bar Council of India may, if it is satisfied that any State Bar Council is in need of funds for the purpose of performing its functions under this Act, give such financial assistance as it deems fit to that Bar Council by way of grant or otherwise.]

47.

Reciprocity.

(1)

Where any country, specified by the Central Government in this behalf by notification in the Official Gazette, prevents citizens of India from practising the profession of law or subjects them to unfair discrimination in that country, no subject of any such country shall be entitled to practise the profession of law in India.

(2)

Subject to the provisions of sub-section (1), the Bar Council of India may prescribe the conditions, if any, subject to which foreign qualifications in law obtained by persons other than citizens of India shall be recognised for the purpose of admission as an advocate under this Act.

48.

Indemnity against legal proceedings.

- No suit or other legal proceeding shall lie against any Bar Council [or any committee thereof]

[Inserted by Act 21 of 1964, Section 36 (w.e.f. 31.1.1974).]

or a member of a Bar Council or any committee thereof for any act in good faith done or intended to be done in pursuance of the provisions of this Act or of any rules made thereunder.

48A.

[Power of revision.

[Inserted by Act 21 of 1964, Section 19.]

(1)

The Bar Council of India may, at any time, call for the record of any proceeding under this Act which has been disposed of by a State Bar Council or a committee thereof, and from which no appeal lies, for the purpose of satisfying itself as to the legality or propriety of such disposal and may pass such orders in relation thereto as it may think fit.

(2)

No order which prejudicially affects any person shall be passed under this section without giving him a reasonable opportunity of being heard.]

48AA.

[Review.

[Inserted by Act 60 of 1973, Section 37 (w.e.f. 31.1.1974).]

- The Bar Council of India or any of its committees, other than its disciplinary committee, may of its own motion or otherwise review any order, within sixty days of the date of that order, passed by it under this Act.]

48B.

[Power to give directions.

[Inserted by Act 60 of 1973, Section 37 (w.e.f. 31.1.1974).]

(1)

For the proper and efficient discharge of the functions of a State Bar Council or any committee thereof, the Bar Council of India may, in the exercise of its powers of general supervision and control, give such directions to the State Bar Council or any committee thereof as may appear to it to be necessary, and the State Bar Council or the committee shall comply with such directions.

(2)

Where a State Bar Council is unable to perform its functions for any reason whatsoever, the Bar Council of India may, without prejudice to the generality of the foregoing power, give such directions, to the ex officio member thereof as may appear to it to be necessary, and such directions shall have effect, notwithstanding anything contained in the rules made by the State Bar Council.]

49.

General power of the Bar Council of India to make rules.

- [(1)]

[Section 49 renumbered as sub-Section (1) thereof by Act 60 of 1973, Section 38 (w.e.f. 31.1.1974.)

The Bar Council of India may make rules for discharging its functions under this Act, and, in particular, such rules may prescribe

(a)

[the conditions subject to which an advocate may be entitled to vote at an election to the State Bar Council including the qualifications or disqualifications of voters, and the manner in which an electoral roll of voters may be prepared and revised by a State Bar Council;

[Substituted by Act 21 of 1964, Section 20, for Cl.(a).]

(ab)

qualifications for membership of a Bar Council and the disqualifications for such membership;

(ac)

the time within which and the manner in which effect may be given to the proviso to sub-section (2) of section (3);

(ad)

the manner in which the name of any advocate may be prevented from being entered in more than one State roll;

(ae)

the manner in which the seniority among advocates may be determined;

(af)

[the minimum qualifications required for admission to a course of degree in law in any recognised University;]

(ag)

the class or category of persons entitled to be enrolled as advocates;

(ah)

the conditions subject to which an advocate shall have the right to practise and the circumstances under which a person shall be deemed to practise as an advocate in a Court;]

(b)

the form in which an application shall be made for the transfer of the name of an advocate from one State roll to another;

(c)

the standard of professional conduct and etiquette to be observed by advocates;

(d)

the standards of legal education to be observed by Universities in India and the inspection of Universities for that purpose;

(e)

the foreign qualifications in law obtained by persons other than citizens of India which shall be recognised for the purpose of admission as an advocate under this Act;

(f)

the procedure to be followed by the disciplinary committee of a State Bar Council and by its own disciplinary committee;

(g)

the restrictions in the matter of practice to which senior advocates shall be subject;

(gg)

[[the form of dresses or robes to be worn by advocates, having regard to the climatic conditions, appearing before any Court or tribunal;]

[Inserted by Act 60 of 1973, Section 38 (w.e.f. 31.1.1974).]

(h)

the fees which may be levied in respect of any matter under this Act;

(i)

[general principles for guidance of State Bar Councils and the manner in which directions issued or orders made by the Bar Council of India may be enforced;

[Inserted by Act 21 of 1964, Section 21, fo Cl.(i).]

(j)

any other matter which may be prescribed:]

[Provided that no rules made with reference to clause (c) or clause (gg) shall have effect unless they have been approved by the Chief Justice of India:]

[Inserted by Act 60 of 1973, Section 38 (w.e.f. 31.1.1974).]

[Provided further that]

[Substituted by Act 60 of 1973, Section 38, for " provided that" (w.e.f. 31.1.1974).]

no rules made with reference to clause (e) shall have effect unless they have been approved by the Central Government.

(2)

[Notwithstanding anything contained in the first proviso to sub-section (1), any rules made with reference to clause (c) or clause (gg) of the said sub-section and in force immediately before commencement of the Advocates (Amendment) Act, 1973 (60 of 1973), shall continue in force until altered or repealed or amended in accordance with the provisions of this Act.]

[Inserted by Act 60 of 1973, Section 38 (w.e.f. 31.1.1974).]

49A.

[Power of Central Government to make rules.

[Inserted by Act 21 of 1964, Section 21.]

(1)

The Central Government may, by notification in the Official Gazette make rules for carrying out the purposes of this Act including rules with respect to any matter for which the Bar Council of India or a State Bar Council has power to make rules.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for

(a)

qualifications for membership of a Bar Council and disqualifications for such membership;

(b)

the manner in which the Bar Council of India may exercise supervision and control over State Bar Councils and the manner in which the directions issued or orders made by the Bar Council of India may be enforced;

(c)

the class or category of persons entitled to be enrolled as advocates under this Act;

(d)

the category of persons who may be exempted from undergoing a course of training and passing an examination prescribed under clause (d) of sub-section (1) of section 24;

(e)

the manner in which seniority among advocates may be determined;

(f)

the procedure to be followed by a disciplinary committee of a Bar Council in hearing cases and the procedure to be followed by a disciplinary committee of the Bar Council of India in hearing appeals; and

(g)

any other matter which may be prescribed.

(3)

Rules under this section may be made either for the whole of India or for all or any of the Bar Councils.

(4)

If any provision of a rule made by a Bar Council is repugnant to any provision of a rule made by the Central Government under this section, then, the rule under this section, whether made before or after the rule made by the Bar Council, shall prevail and the rule made by the Bar Council shall, to the extent of the repugnancy, be void.

(5)

[Every rule made under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.]

50.

Repeal of certain enactments.

(1)

On the date on which a State Bar Council is constituted under this Act, the provisions of sections 3 to 7 (inclusive), sub-sections (1), (2) and (3) of section 9, section 15 and section 20 of the Indian Bar Councils Act, 1926 (38 of 1926

), shall stand repealed in the territory for which the State Bar Council is constituted.

(2)

On the date on which Chapter III comes into force, the following shall stand repealed, namely:

(a)

sections 6, 7, 18 and 37 of the Legal Practitioners Act, 1879 (18 of 1879

),] and so much of sections 8, 9, 16, 17, 19 and 41 of that Act as relate to the admission and enrolment of legal practitioners;

(b)

sections 3, 4 and 6 of the Bombay Pleaders Act, 1920 (Bombay Act 17 of 1920);

(c)

so much of section 8 of the Indian Bar Councils Act, 1926 (38 of 1926

), as relates to the admission and enrolment of legal practitioners;

(d)

the provisions of the Letters Patent of any High Court and of any other law insofar as they relate to the admission and enrolment of legal practitioners.

(3)

On the date on which Chapter IV comes into force, the following shall stand repealed, namely:

(a)

sections 4, 5, 10 and 20 of the Legal Practitioners Act, 1879 (18 of 1879

), and so much of sections 8, 9, 19 and 41 of that Act as confer on legal practitioners the right to practise in any Court or before any authority or person;

(b)

sections 5, 7, 8 and 9 of the Bombay Pleaders Act, 1920 (Bombay Act 17 of 1920);

(c)

section 14 of the Indian Bar Councils Act, 1926 (38 of 1926

), and so much of sections 8 and 15 of that Act as confer on legal practitioners the right to practise in any Court or before any authority or person;

(d)

the Supreme Court Advocates (Practice in High Courts) Act, 1951 (18 of 1951

);

(e)

the provisions of the Letters Patent of any High Court and of any other law conferring on legal practitioners the right to practise in any Court or before any authority or person.

(4)

On the date on which Chapter V comes into force, the following shall stand repealed, namely:

(a)

sections 12 to 15 (inclusive), sections 21 to 24 (inclusive) and sections 39 and 40 of the Legal Practitioners Act, 1879 (18 of 1879

), and so much of sections 16, 17 and 41 of that Act as relate to the suspension, removal or dismissal of legal practitioners;

(b)

sections 24 to 27 (inclusive) of the Bombay Pleaders Act, 1920 (Bombay Act 17 of 1920);

(c)

sections 10 to 13 (inclusive) of the Indian Bar Councils Act, 1926 (38 of 1926

);

(d)

the provisions of the Letters Patent of any High Court and of any other law insofar as they relate to the suspension, removal or dismissal of legal practitioners.

(5)

When the whole of this Act has come into force

(a)

the remaining provisions of the Acts referred to in this section which do not stand repealed by virtue of any of the foregoing provisions of this section [except sections 1, 3 and 36 of the Legal Practitioners Act, 1879 (18 of 1879

)" shall stand repealed;

(b)

the enactments specified in the Schedule shall stand repealed to the extent mentioned therein.

51.

Rule of construction.

- On and from the appointed day, references in any enactment to an advocate enrolled by a High Court in any form of words shall be construed as references to an advocate enrolled under this Act.

52.

Saving.

- Nothing in this Act shall be deemed to affect the power of the Supreme Court to make rules under article 145 of the Constitution

(a)

for laying down the conditions, subject to which a senior advocate shall be entitled to practise in that Court;

(b)

for determining the persons who shall be entitled to [act or plead]

[Substituted by Act 70 of 1993, Section 9, for " act" (w.e.f 24.12.1993).]

in that Court.

Chapter VII

Temporary And Transitional Provisions

53.

Elections to first State Bar Council.

- Notwithstanding anything contained in this Act, the elected members of a State Bar Council, constituted for the first time under this Act, shall be elected by and from amongst advocates, vakils, pleaders and attorneys who, on the date of

the election, are entitled as of right to practise in the High Court and are ordinarily practising within the territory for which the Bar Council is to be constituted.

Explanation. Where the territory for which the Bar Council is to be constituted includes a Union territory, the expression High Court shall include the Court of the Judicial Commissioner of that Union territory.

54.

Term of office of members of first [* * *]

[The words " the Bar Council of India and " omitted by Act 21 of 1964, Section 22.]

State Bar Councils.

- Notwithstanding anything contained in this Act, the term of office of the [* * *]

[The words [nominated and" omitted by Act 14 of 1962, Section 3.]

elected members of [* * *]

[The words " the Bar Council of India and " omitted by Act 21 of 1964, Section 22.]

a State Bar Council constituted for the first time, shall be two years from the date of the first meeting of the Council:

[Provided that such members shall continue to hold office until the State Bar Council is reconstituted in accordance with the provisions of this Act.]

[Inserted by Act 21 of 1964, Section 22.]

55.

Rights of certain existing legal practitioners not affected.

- Notwithstanding anything contained in this Act,

(a)

every pleader or vakil practising as such immediately before the date on which Chapter IV comes into force (hereinafter in this section referred to as the said date) by virtue of the provisions of the Legal Practitioners Act, 1879 (

18 of 1879

), the Bombay Pleaders Act, 1920 (17 of 1920), or any other law who does not elect to be, or is not qualified to be, enrolled as an advocate under this Act;

(c)

[every mukhtar practising as such immediately before the said date by virtue of the provisions of the Legal Practitioners Act, 1879 (

18 of 1879

), or any other law, who does not elect to be, or is not qualified to be, enrolled as an advocate under this Act; [[Clause

(b) omitted by Act 107 of 1976, Section 10 (w.e.f. 1.1.1977) [* * *] </p>

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(d)

every revenue agent practising as such immediately before the said date by virtue of the provisions of the Legal Practitioners Act, 1879 (

18 of 1879

), or any other law,]

shall, notwithstanding the repeal by this Act of the relevant provisions of the Legal Practitioners Act, 1879 (

18 of 1879

), the Bombay Pleaders Act, 1920 (Bombay Act 17 of 1920), or other law, continue to enjoy the same rights as respects practice in any Court or revenue office or before any authority or person and be subject to the disciplinary jurisdiction of the same authority which he enjoyed or, as the case may be, to which he was subject immediately before the said date and accordingly the relevant provisions of the Acts or law aforesaid shall have effect in relation to such persons as if they had not been repealed.

56.

Dissolution of existing Bar Councils.

(1)

On the constitution under this Act of a State Bar Council, other than the Bar Council of Delhi (hereinafter referred to as the new Bar Council)

(a)

all properties and assets vesting in the corresponding Bar Council shall vest in the new Bar Council;

(b)

all rights, liabilities and obligations of the corresponding Bar Council, whether arising out of any contract or otherwise, shall be the rights, liabilities and obligations respectively of the new Bar Council;

(c)

all proceedings pending before the corresponding Bar Council in respect of any disciplinary matter or otherwise shall stand transferred to the new Bar Council.

(2)

In this section, corresponding Bar Council in relation to a State Bar Council, other than the Bar Council of Delhi, means the Bar Council for the High Court in territory for which the State Bar Council is constituted under this Act.

57.

Power to make rules pending the constitution of a Bar Council.

- Until a Bar Council is constituted under this Act, the power of that Bar Council to make rules under this Act shall be exercised

(a)

in the case of the Bar Council of India, by the Supreme Court;

(b)

in the case of a State Bar Council, by the High Court.

58.

[Special provisions during the transitional period.

[Inserted by Act 14 of 1962, Section 4.]

(1)

Where a State Bar Council has not been constituted under this Act or where a State Bar Council so constituted is unable to perform its functions by reason of any order of a Court or otherwise, the functions of that Bar Council [or of any Committee thereof, insofar as they relate to the admission and enrolment of advocates, shall be performed by the High Court in accordance with the provisions of this Act.

(2)

Until Chapter IV comes into force, a State Bar Council or a High Court performing the functions of a State Bar Council may enrol any person to be an advocate on a State roll, if he is qualified to be so enrolled under this Act, notwithstanding that no rules have been made under section 28 or that the rules so made have not been approved by the Bar Council of India, and every person so enrolled shall, until that Chapter comes into force, be entitled to all the rights of practice conferred on an advocate under section 14 of the Indian Bar Councils Act, 1926 (

38 of 1926

).

(3)

Notwithstanding anything contained in this Act, every person who, immediately before the 1st day of December, 1961, was an advocate on the roll of any High Court under the Indian Bar Councils Act, 1926 (

38 of 1926

), or who has been enrolled as an advocate under this Act shall, until Chapter IV comes into force, be entitled as of right to practise in the Supreme Court, subject to the rules made by the Supreme Court in this behalf.

(4)

Notwithstanding the repeal by sub-section (2) of section 50 of the provisions of the Legal Practitioners Act, 1879 (

18 of 1879

), or of the Bombay Pleaders Act, 1920 (Bombay Act 17 of 1920), or of any other law relating to the admission and enrolment of legal practitioners, the provisions of the Acts and law aforesaid]and any rules made thereunder insofar as they relate to [the renewal or the issue by way of renewal]

[Substituted by Act 21 of 1964, Section 24, for " the issue and renewal" .]

of a certificate to a legal practitioner authorising him to practise shall have effect until Chapter IV comes into force and, accordingly , every certificate issued or renewed to a legal practitioner (who is not enrolled as an advocate under this Act) which is or purports to be issued or renewed under the provisions of either of the aforesaid Acts [or of the other law]

[Inserted by Act 32 of 1962, Section 3.]

during the period beginning with the 1st day of December, 1961 and ending with the date on which Chapter IV comes

into force, shall be deemed to have been validly issued or renewed.]

58A.

[Special provisions with respect to certain advocates.

[Inserted by Act 21 of 1964, Section 25.]

(1)

Notwithstanding anything contained in this Act, all advocates who, immediately before the 26th day of July, 1948, were entitled to practise in the High Court in Allahabad or the Chief Court in Oudh and who under the provisions of the United Provinces High Courts (Amalgamation) Order, 1948 were recognised as advocates entitled to practise in the new High Court of Judicature at Allahabad but whose names were not formally entered on the roll of advocates of that High Court merely by reason of the non-payment of the fee payable to the Bar Council of the said High Court, and all advocates who were enrolled as such between the said date and the 26th day of May, 1952, shall, for the purposes of clause (a) of sub-section (1) of section 17 be deemed to be persons who were entered as advocates on the roll of the said High Court under the Indian Bar Councils Act, 1926 (

38 of 1926

), and every such person may, on an application being made in this behalf, be admitted as an advocate on the State roll of Uttar Pradesh.

(2)

Notwithstanding anything contained in this Act, all advocates who, immediately before the 10th day of October, 1952, were entitled to practise in the High Court of Hyderabad but whose names were not formally entered on the roll of advocates of that High Court merely by reason of the non-payment of the fee payable to the Bar Council of the said High Court shall, for the purposes of clause (a) of sub-section (1) of section 17, be deemed to be persons who were entered as advocates on the roll of the said High Court under the Indian Bar Councils Act, 1926 (

38 of 1926

), and every such person may, on an application being made in this behalf, be admitted as an advocate on the State roll of Andhra Pradesh or of Maharashtra.

(3)

Notwithstanding anything contained in this Act, all advocates who, immediately before the 1st day of May, 1960, were entitled to practise in the High Court of Bombay and who applied to get their names entered on the roll of advocates of the High Court of Gujarat under the provisions of section 8 of the Indian Bar Councils Act, 1926 (

38 of 1926

), but whose names were not so entered by reason of the repeal of the said provision shall, for the purposes of clause (a) of sub-section (1) of section 17, be deemed to be persons who were entered as advocates on the roll of the High Court of Gujarat under the said Act and every such person may, on an application being made in this behalf, be admitted as an advocate on the State roll of Gujarat.

(4)

Notwithstanding anything contained in this Act, all persons who immediately before the 1st day of December, 1961, were advocates on the roll of the Court of Judicial Commissioner in any Union territory under any law in force in that territory shall, for the purposes of clause (a) of sub-section (1) of section 17, be deemed to be persons who were entered as advocates on the roll of a High Court under the Indian Bar Councils Act, 1926 (

38 of 1926

), and every such person may, on an application made in this behalf, be admitted as an advocate on the State roll maintained in respect of that Union territory.]

58AA.

[Special provisions in relation to the Union territory of Pondicherry.]

[Inserted by Act 26 of 1968, Section 3 and Sch.]

.

(1)

Notwithstanding anything contained in this Act, all persons who, immediately before the date on which the provisions of Chapter III are brought into force in the Union territory of Pondicherry, were entitled to practise the profession of law (whether by way of pleading or acting or both) under any law in force in the said Union territory or who would have been so entitled had they not been in public service on the said date, shall for the purposes of clause (a) of sub-section (1) of

section 17, be deemed to be persons who were entered as advocates on the roll of a High Court under the Indian Bar Councils Act, 1926 (

38 of 1926

), and every such person may, on an application made in this behalf within such time as may be specified by the Bar Council of Madras, be admitted as an advocate on the State roll maintained in respect of the said Union territory.

(2)

Notwithstanding anything contained in this Act, every person who, immediately before the date on which the provisions of Chapter IV are brought into force in the Union territory of Pondicherry, was practising the profession of law (whether by way of pleading or acting or both or in any other way) by virtue of the provisions of any law in force in the said Union territory, who does not elect to be or is not qualified to be, enrolled as an advocate under sub-section (1), shall, notwithstanding the repeal of the relevant provisions of such law by the Pondicherry (Extension of Laws) Act, 1968 (26 of 1968), continue to enjoy the same rights as respects practice in any Court or revenue office or before any authority or person and be subject to the disciplinary jurisdiction of the same authority which he enjoyed, or, as the case may be, to which he was subject, immediately before the said date and accordingly the relevant provisions of the law aforesaid shall have effect in relation to such persons as if they had not been repealed.

58AB.

[Special provisions with respect to certain persons enrolled by Mysore State Bar Council.

[Inserted by Act 33 of 1968, Section 3 (w.e.f. 5.6.1968).]

- Notwithstanding anything contained in this Act or any judgment, decree or order of any Court or any resolution passed or direction given by the Bar Council of India, every person who was admitted as an advocate on the State roll by the State Bar Council of [Karnataka] during the period beginning with the 28th day of February, 1963, and ending on the 31st day of March, 1964, on the basis of his having obtained a certificate of pleadership from the High Court of [Karnataka]

[Substituted by the Mysore State (Alteration of Name)(Adaptation of Laws on Union Subjects) Order, 1974, for [Mysore" (w.e.f. 1.11.1973).]

, shall, save as otherwise provided, be deemed to have been validly admitted as an advocate on that State roll and accordingly entitled to practise the profession of law (whether by way of pleading or acting or both):

Provided that where any such person has elected to be enrolled as an advocate on the roll of any other State Bar Council, his name shall be deemed to have been struck off the roll of the State Bar Council of Mysore from the date he was enrolled by the other State Bar Council:

Provided further that the seniority of such person, whether his name is borne on the State roll of the State Bar Council of [Karnataka]

[Substituted by the Mysore State (Alteration of Name)(Adaptation of Laws on Union Subjects) Order, 1974, for " Mysore" (w.e.f. 1.11.1973).]

, or on the State roll of any other Bar Council, shall, for the purposes of clause (d) of sub-section (3) of section 17, be determined by reckoning the 16th day of May, 1964, as the date of admission.]

58AC.

[Special provisions with respect to certain persons enrolled by Uttar Pradesh State Bar Council]

[Inserted by Act 60 of 1973, Section 40 (w.e.f. 31.1.1974).]

- Notwithstanding anything contained in this Act or any judgment, decree or order of any Court, every person who was enrolled as an advocate by the High Court during the period beginning with the 2nd day of January, 1962 and ending on the 25th day of May, 1962 and was subsequently admitted as an advocate on the State roll by the State Bar Council of Uttar Pradesh shall be deemed to have been validly admitted as an advocate on that State roll from the date of his enrolment by the High Court and accordingly entitled to practise the profession of law (whether by way of pleading or acting or both).

58AD.

Special provisions with respect to certain persons migrating to India.

- Notwithstanding the repeal by this Act of the provisions of the Legal Practitioners Act, 1879 (18 of 1879

), or of any other law relating to the admission and enrolment of legal practitioners (hereafter in this section referred to

as such Act or law), every person who migrates to the territory of India from any area which, before the 15th day of August, 1947, was comprised within India as defined in the Government of India Act, 1935, and who has, before such migration, been a pleader, mukhtar or revenue agent in any such area under any law in force therein, may be admitted and enrolled under the relevant provisions of such Act or law as a pleader, mukhtar or, as the case may be, revenue agent, if he

(a)
makes an application for the purpose to the appropriate authority under such Act or law; and

(b)
is a citizen of India and fulfils other conditions, if any, specified in this behalf by the appropriate authority aforesaid, and notwithstanding the repeal by this Act of the relevant provisions of such Act or law, every pleader, mukhtar or revenue agent so enrolled shall have the same rights as respects practice in any Court or revenue office or before any other authority or person and be subject to the disciplinary jurisdiction of the same authority to which he would be subject under the relevant provisions of such Act or law as if they had been repealed and accordingly, those provisions shall have effect in relation to such persons.

58AE.

Special provisions in relation to the Union territory of Goa, Daman and Diu.

(1)
Notwithstanding anything contained in this Act, all persons who, immediately before the date on which the provisions of Chapter III are brought into force in the Union territory of Goa, Daman and Diu, were entitled to practise the profession of law (whether by way of pleading or acting or both) under any law in force in the said Union territory or who would have been so entitled had they not been in public service on the said date, shall for the purpose of clause (a) of sub-section (1) of section 17, be deemed to be persons who were entered as advocates on the roll of a High Court under the Indian Bar Councils Act, 1926 (38 of 1926

), and every such person may, on an application made in this behalf within such time as may be specified by the Bar Council of Maharashtra, be admitted as an advocate on the State roll maintained in respect of the said Union territory: Provided that the provisions of this sub-section shall not apply to any person who, on the date of the application aforesaid, was not a citizen of India.

(2)
Notwithstanding anything contained in this Act, every person who, immediately before the date on which the provisions of Chapter IV are brought into force in the Union territory of Goa, Daman and Diu, was practising the profession of law (whether by way of pleading or acting or both or in any other way) by virtue of the provisions of any law in force in the said Union territory, or who does not elect to be or is not qualified to be enrolled as an advocate under sub-section (1), shall, notwithstanding the repeal by this Act of the relevant provisions of such law, continue to enjoy the same rights as respects practice in any Court or revenue office or before any other authority or person and be, subject to the disciplinary jurisdiction of the same authority which he enjoyed, or, as the case may be, to which he was subject, immediately before the said date and accordingly the relevant provisions of the law aforesaid shall have effect in relation to such persons as if they had not been repealed.

(3)
On the date on which this Act or any part thereof comes into force in the Union territory of Goa, Daman and Diu, the law in force in that Union territory which corresponds to this Act or such part and which does not stand repealed by virtue of the provisions of section 50 of this Act, shall also stand repealed.

58AF.

Special provisions in relation to Jammu and Kashmir.

(1)
Notwithstanding anything contained in this Act, all advocates who, immediately before the date on which the provisions of Chapter III are brought into force in the State of Jammu and Kashmir, were entitled to practise in the High Court of that State, or who would have been so entitled had they not been in public service on the said date, shall, for the purpose of the clause (a) of sub-section (1) of section 17, be deemed to be persons who were entered as advocates on the roll of a High Court under the Indian Bar Councils Act, 1926 (38 of 1926

), and every such person may, on an application made in this behalf within such time as may be specified by the Bar Council of India, be admitted as an advocate on the State roll maintained in respect of the said State.

(2)

Notwithstanding anything contained in this Act, every person who, immediately before the date on which the provisions of Chapter III are brought into force in the State of Jammu and Kashmir, was entitled otherwise than as an advocate to practise the profession of law (whether by way of pleading or acting or both) by virtue of the provisions of any law in force in the said State, or who would have been so entitled had he not been in public service on the said date, may be admitted as an advocate on the State roll maintained in respect of the said State, if he

(i)

makes an application for such enrolment in accordance with the provisions of this Act; and

(ii)

fulfils the conditions specified in clauses (a), (b), (e) and (f) of sub-section (1) of section 24.

(3)

Notwithstanding anything contained in this Act, every person who, immediately before the date on which the provisions of Chapter IV are brought into force in the State of Jammu and Kashmir, was practising the profession of law (whether by way of pleading or acting or both or in any other way) by virtue of the provisions of any law in force therein, or who does not elect to be or is not qualified to be enrolled as an advocate under sub-section (1) or sub-section (2), shall, notwithstanding the repeal by this Act of the relevant provisions of such law, continue to enjoy the same rights as respects practice in any Court or revenue office or before any other authority or person and be subject to the disciplinary jurisdiction of the same authority which he enjoyed, or, as the case may be, to which he was subject, immediately before the said date and accordingly the relevant provisions of the law aforesaid shall have effect in relation to such persons as if they had not been repealed.

(4)

On the date on which this Act or any part thereof comes into force in the State of Jammu and Kashmir, the law in force in that State which corresponds to this Act or such part thereof which does not stand repealed by virtue of the provisions of section 50 of this Act, shall also stand repealed.

58AG.

[Special provisions in relation to articled clerks.

[Inserted by Act 38 of 1977, Section 7 (w.e.f. 31.10.1977).]

- Notwithstanding anything contained in this Act, every person who, immediately before the 31st day of December, 1976, has commenced his articleship and passed the preliminary examination, for the purpose of enrolment as an attorney of the High Court at Calcutta in accordance with the rules made under sub-section (2) of section 34, before the omission of that sub-section by the Advocates (Amendment) Act, 1976 (107 of 1976), may be admitted as an advocate on the State roll if he

(i)

passes, on or before the 31st day of December, 1980,

(a)

the Final examination in a case where such person has, before the 31st day of December, 1976, passed the Intermediate examination,

(b)

the Intermediate and the Final examinations in any other case.

Explanation. For the purpose of this clause, the High Court at Calcutta may prescribe such rules as may be necessary under sub-section (2) of section 34, specifying the nature of the examinations and any other matter relating thereto;

(ii)

makes an application for such enrolment in accordance with the provisions of this Act; and

(iii)

fulfils the conditions specified in clauses (a), (b), (e) and (f) of sub-section (1) of section 24.]

58B.

[Special provision relating to certain disciplinary proceedings.

[Inserted by Act 21 of 1964, Section 25.]

(1)

As from the 1st day of September, 1963, every proceeding in respect of any disciplinary matter in relation to an existing advocate of a High Court shall, save as provided in the first proviso to sub-section (2), be disposed of by the State Bar Council in relation to that High Court, as if the existing advocate had been enrolled as an advocate on its roll.

(2)

If immediately before the said date, there is any proceeding in respect of any disciplinary matter in relation to an existing advocate pending before any High Court under the Indian Bar Councils Act, 1926 (

38 of 1926

), such proceeding shall stand transferred to the State Bar Council in relation to that High Court, as if it were a proceeding pending before the corresponding Bar Council under clause (c) of sub-section (1) of section 56:

Provided that where in respect of any such proceeding the High Court has received the finding of a Tribunal constituted under section 11 of the Indian Bar Councils Act, 1926 (

38 of 1926

), the High Court shall dispose of the case and it shall be lawful for the High Court to exercise for the purpose all powers conferred on it under section 12 of the said Act as if that section had not been repealed:

Provided further that where the High Court has referred back any case for further inquiry under sub-section (4) of section 12 of the said Act, the proceeding shall stand transferred to the State Bar Council in relation to the High Court as if it were a proceeding pending before the corresponding Bar Council under clause (c) of sub-section (1) of section 56.

(3)

If immediately before the said date there is any proceeding in respect of any disciplinary matter pending in relation to any pleader, vakil, mukhtar or attorney, who has been enrolled as an advocate on any State roll under the Act, such proceeding shall stand transferred to the State Bar Council on the roll of which he has been enrolled and be dealt with under this Act as if it were a proceeding arising against him thereunder.

(4)

In this section existing advocate means a person who was enrolled as an advocate on the roll of any High Court under the Indian Bar Councils Act, 1926 (

38 of 1926

) and who, at the time when any proceeding in respect of any disciplinary matter is initiated against him, is not enrolled as an advocate on a State roll under this Act.

(5)

The provisions of this section shall have effect, notwithstanding anything contained in this Act.]

59.

[Removal of difficulties.

[Inserted by Act 14 of 1962, Section 4.]

(1)

If any difficulty arises in giving effect to the provisions of this Act, particularly in relation to the transition from the enactments repealed by this Act to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions not inconsistent with the purposes of this Act, as appear to it to be necessary or expedient for removing the difficulty.

(2)

An order under sub-section (1) may be made so as to have retrospective effect from a date not earlier than the 1st day of December, 1961.]

60.

[Powers of Central Government to make rules.

[Inserted by Act 32 of 1962, Section 4.]

(1)

Until rules in respect of any matter under this Act are made by a State Bar Council and approved by the Bar Council of India, the power to make rules in respect of that matter shall be exercisable by the Central Government.

(2)

The Central Government after consultation with the Bar Council of India may, by notification in the Official Gazette, make rules under sub-section (1) either for any State Bar Council or generally for all State Bar Councils and the rules so made shall have effect, notwithstanding anything contained in this Act.

(3)

Where in respect of any matter any rules made by the Central Government under this section for any State Bar Council, and in respect of the same matter, rules are made by the State Bar Council and approved by the Bar Council of India, the Central Government may, by notification in the Official Gazette, direct that the rules made by it in respect of such matter shall cease to be in force in relation to the Bar Council with effect from such date as may be specified in the notification and on the issue of such notification, the rules made by the Central Government shall, accordingly, cease to be in force except as respects things done or omitted to be done before the said date.]

The Schedule

See section 50(5)]

Repeal of certain enactments

Short title

Extent of repeal

1.

The Legal Practitioners (Women) Act, 1923 (23 of 1923)

The whole.

2.

The Legal Practitioners (Fees) Act, 1926 (21 of 1926)

The whole.

3.

The States Reorganisation Act, 1956 (

37 of 1956

).

Section 53.

4.

The Bombay Reorganisation Act, 1960 (

11 of 1960

).

Section 31.

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